IndianOil

Tender No.: **HCC/ENG-29/PT-95/24-25**

Supply, Fabrication, Erection and Laying of pipelines including HDD and hookup with existing & operational Propane / Butane IPPL pipeline through hot tapping method near under-construction captive jetty of IOCL at Kamarajar Port Limited, Ennore, Chennai

IndianOil Corporation Limited
(Marketing Division)
Indian Oil Bhavan
G-9, Ali Yavar Jung Marg,
Bandra (East), Mumbai - 400 051
India.

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Bidders should refer this Tender Document i.e. PART-A and also PART-B which has been attached separately for submitting Declarations Undertakings and Annexures.

NOTICE INVITING E-TENDER

ANNEXURE – 1

Indian Oil Corporation Limited invites electronic bids through its website https://iocletenders.nic.in under two bid systems for the work as detailed below from bonafide experienced bidders fulfilling the qualifying requirements as stated hereunder:

1.	TENDER NO:	**Tender No-HCC/ENG-29/PT-95-24-25** **E-Tender ID: 2024_MKTHO_181479**
2.	NAME OF WORK	**Supply, Fabrication, Erection and Laying of pipelines including HDD and hookup with existing & operational Propane / Butane IPPL pipeline through hot tapping method near under-construction captive jetty of IOCL at Kamarajar Port Limited, Ennore, Chennai.**
3.	TYPE OF TENDER	Electronic Bid under two-bid with Reverse Auction system Part-1: Technical/ Commercial Bid Part-2: Price Bid
4.	TENDER FEE:	**NIL.** Bidders are required to download the tender documents free of cost from IOCL e-tender website. (https://iocletenders.nic.in)
5.	EARNEST MONEY DEPOSIT	**Rs 3.90 Lac (Rupees Three Lac Ninety Thousand only)** EMD should be deposited as detailed below: ➢ **Online EMD payment through IOCL e-tender portal** ➢ **Bank Guarantee as an instrument towards Earnest Money Deposit shall be accepted if amount of EMD is not less than Rupees One lakh.** For detail about process of payment of online EMD, bidders shall refer **"Special Instructions to the Bidder (SITB)"** and **"FAQs - Online EMD Facility in IOCL e-Tendering"** documents attached separately along with the tender. **Offline EMD payment through Demand Draft (DD), Bankers Cheque (BC) and Swift Transfer shall not be accepted**. In case of Bank Guarantee, it must be strictly as per IOCL format. Scanned Copy of EMD instrument i.e. Bank Guarantee has to be uploaded in the technical bid section and the bidder should also ensure that the original BG in physical form duly enclosed in a sealed envelope super-scribed with "Offline EMD", Bidder's Name, Tender No., bid submission end date & time, is received at the office of tender issuing authority. Please also refer relevant section in tender for category of banks from which BG can be accepted. Original BG should reach to Tender Issuing Authority clearly mentioning the tender reference no. as mentioned above within 7 working days from the date of opening of technical bid at the address given below: AM(Contracts)

		Indian Oil Corporation Limited (Marketing Division), Head Office Contract Cell Department, 6th Floor. Indian Oil Bhavan, G-9, Ali Yavar Jung Marg, Bandra (East), Mumbai – 400 051, Maharashtra, India Contact No 022-2644 8146 E-mail ID: raneda@indianoil.in For the purpose of receipt of BG, the time recorded in the receipt/DAK section against receipt shall also be considered as receipt time. **Only those physical BG instruments found matching with the copy submitted in the e-portal shall be considered as valid.** IOCL shall not be responsible for postal/courier delay, non-receipt or loss in transit. Bank Guarantee towards EMD should be valid for 09 (nine) months from the date of opening of technical bid. If needed, validity of BG should be extended by the party / Bank. Bank Guarantee should be submitted as per enclosed proforma only by the Tenderer. Such BG should be submitted only in a sealed envelope and should not be in open condition. If BG towards EMD is submitted in any manner other than aforesaid, the Tender is liable to be rejected. **If the original BG instrument is not received by the due date and time as specified above, the bid shall be liable for rejection.** **Exemption from submission of EMD:** a. Government organizations, Public Sector Undertaking of the Central / State Government, JV / subsidiary companies of IOCL and startups are exempted from submission of EMD. b. A copy of the EMD instrument or exemption certificate in case of exempted categories shall be uploaded along with clear scanned copies of required documents to substantiate the claim towards their credentials along with the tender documents in the appropriate link. c. **Tenderers not paying EMD (online) or not uploading scan copy of valid exemption certificate or BG towards EMD on or before tender submission date and time is liable for rejection**.
6.	TENDER DOWNLOAD PERIOD FROM e-TENDER PORTAL:	
	a) STARTS ON b) ENDS ON	Please refer to tender details in e-tender portal

7.	DATE & VENUE OF PRE-BID CONFERENCE:	05-10-2024 @11:00hrs Join Meeting with MS Teams Meeting ID: 489 109 174 845 Passcode: gm3AtQ Meeting Link: https://teams.microsoft.com/l/meetup-join/19%3ameeting_MjZkMGFkM2EtNTdjOS00NGFiLTg1ZmYtOWEyZTNmZGU5ZGZk%40thread.v2/0?context=%7b%22Tid%22%3a%22a2f14507-fab7-4185-9f8d-bbb265ce04e5%22%2c%22Oid%22%3a%227ade4849-b92c-4d68-8e44-c934019e12b0%22%7d Bidders to please note carefully the above schedule for Pre-Bid Conference since all the clarifications, if any, with regard to Technical/ Commercial conditions shall be given therein. Tenderers intending to raise queries shall do so either through e-mail to the contact person or through seek clarification option on e-tender portal, before the due date & time of pre-bid meeting. Bidders are advised to ensure that their queries must reach by e-mail addressed to the Contact person (given below) at least one working day in advance for this purpose. Tenderers may also note that after the clarifications are given against the points discussed in Pre-Bid conference, no further deviation shall be permitted and such clarifications shall be binding on all bidders. Bidders may please note that IOCL shall not be under any obligation to respond to queries mailed after the date specified above. All are requested to attend the Pre-Bid conference. Pre-bid queries in advance may be mailed to the following persons: raneda@indianoil.in
8.	SUBMISSION OF TENDER IN e-TENDER PORTAL:	
	a) STARTS ON b) ENDS ON	Please refer to tender details in e-tender portal
9.	BID OPENING DATE (Techno-commercial Bid)	Please refer to tender details in e-tender portal
10.	BIDDING ENTITY	Bids may be submitted by following entities: i. Sole Bidders (Company/ Proprietorship firm/ Partnership firm) ii. An incorporated Joint Venture Company iii. Wholly owned Indian subsidiary of a foreign company on the technical strength of its parent company JVs registered under the Indian Companies Act as on date of submission of bid are permitted. In such cases, all credentials to be submitted for qualification in the tender shall be in the name of JV. Consortium (including unincorporated Joint Venture) shall not be allowed for bidding.

11.	VALIDITY OF OFFER:	**04 (Four) months** from the date of opening of technical bids. In case of requirement, IOCL may seek further extension of the validity of the offer from the bidder. In such case, the bidders are advised to extend their validity without any deviation and without any change in the prices.
12.	WORK COMPLETION TIME:	**Four months from date of LOA**
13.	REVERSE AUCTION	Applicable for this tender, as per details given in Part-B of the tender. Separate pdf file on Reverse Auction has been attached with this tender.
14.	PURCHASE PREFERENCE AS PER PPMII 2017	Only PPMII 2017 Policy shall be applicable, and bids shall be evaluated based on this Policy. Bids from only Class-I and Class-2 local suppliers, as defined in the above-mentioned PPMII 2017 policy, shall be considered for evaluation. Bidders to submit certificate in the attached format for declaration of Local Content alongwith certification from Statutory Auditor / Cost Auditor (in case of Company) or Practicing Cost Accountant / Practicing Chartered Accountant (in case of other than company). For availing purchase preference under PPMII, the bidder should update the necessary details in their profile in "MY ACCOUNT MENU" of e-tender portal before submission of their bids. Bidder has to select "YES" in response to "Avail Preferential Bidding Option" and choose the preference, otherwise, the preferential treatment will not be available for the bidders. For above process, Bidders are requested to read the help document – Bidders help for Preferential bidding which is uploaded separately with this Tender. There is no purchase preference for MSEs.
15.	CONTACT PERSON	AM(Contracts) Indian Oil Corporation Limited (Marketing Division), Head Office Contract Cell Department, 6th Floor. Indian Oil Bhavan, G-9, Ali Yavar Jung Marg, Bandra (East), Mumbai – 400 051, Maharashtra, India Contact No 022-2644 8146 E-mail ID: raneda@indianoil.in
16.	NODAL OFFICER / INDEPENDENT EXTERNAL MONITORS (IEM) FOR IMPLEMENTATION OF INTEGRITY PACT	Name / Details of IEMs are available on https://iocl.com/integrity-pact Common email ID: iem-iocl@indianoil.in IEMs a. Mr. Vijai Prakash Pathak, IRSS (Retd.) and Former Member Materials Management (MMM), Railway Board b. Mr. Ashok V Subhedar, Vice Admiral (Retd.) c. Mr. K.D. Tripathi,IAS (Retd.)

17. <u>PRE-QUALIFICATION CRITERIA:</u>

Those who are meeting qualifying parameters as per details mentioned below only need to apply:

17.1 **Annual Turnover Criteria:**

Annual turnover of the Bidder (based on standalone financials of bidding entity) during any of the last three preceding years, ending 31.03.2024 should be at least Rs. 9,36,31,000/- (Rupees Nine Crore Thirty Six Lac Thirty One Thousand only) i.e. during any of the three preceding financial years viz. 2021-22, 2022-23 and 2023-24.

17.1.1 Turnover for this purpose should be as per audited financial statements. The reports issued by any Auditor / Chartered Accountant shall mandatorily bear UDIN (Unique Document Identification Number) for such reports of FY 2019-20 onwards.

17.1.2 For bidders whose financial year is calendar year, the audited financial results shall be considered on calendar year basis in lieu of financial year.

17.1.3 If a bidder is not required to get its accounts audited under Section 44AB of The Income Tax Act, 1961, certificate from a Practicing Chartered Accountant towards the turnover of the tenderer along with copy of its Income Tax Return to be submitted.

17.1.4 For Govt /PSU firms, letter from Company Secretary certifying the annual turnover for the applicable financial years shall also be accepted. Original letter will have to be produced at the time of verification of documents.

17.2 **Similar Work Experience Criteria:**

Work completed by the bidder, as main contractor, or as sub-contractor, during last seven years ending last day of month previous to the original date of bid submission. The value of completed work for evaluation shall be considered as under:

a. **Three Similar Completed works** each costing not less than the amount equal to **Rs. 4,68,16,000/-** (Rupees Four Crore Sixty Eight Lac Sixteen Thousand only) **including all taxes.**
(OR)
b. **Two similar completed works** each costing not less than the amount equal to **Rs. 6,24,21,000/-** (Rupees Six Crore Twenty Four Lac Twenty One Thousand only) **including all taxes.**
(OR)
c. One similar completed work costing not less than the amount equal to **Rs. 7,80,26,000/-** (Rupees Seven Crore Eighty Lac Twenty Six Thousand only) **including all taxes.**

17.2.1 **Definition of similar work:**

a)	Works involving Laying of hydrocarbon carrying steel pipeline including horizontal directional drilling (HDD) for Hydrocarbon (Oil/Gas) industries or Refineries or Petrochemical Plants or Fertilizer Industries or Power plants, for a value meeting the monetary limit for similar works as defined in the tender.
OR	
b)	Works involving Laying of hydrocarbon carrying steel pipeline for Hydrocarbon (Oil/Gas) industries or Refineries or Petrochemical Plants or Fertilizer Industries or Power plants, for a value meeting the monetary limit for similar works as defined in the tender. In addition to above, bidder should have successfully completed at least one work of horizontal directional drilling (HDD) for hydrocarbon carrying steel pipeline for Hydrocarbon

	(Oil/Gas) industries or Refineries or Petrochemical Plants or Fertilizer Industries or Power plants irrespective of the order value.

17.2.2 Bidders shall submit Purchase/ Work Order copy with Schedule of Rates/ Scope of Works and Completion certificate by end client with executed value, date of completion of the job and reference work order number for experience of the works consideration for qualification and must contain the above similar work item (s).

17.2.3 For fulfilling the experience criteria against work order(s), following documents may be considered as valid proof for meeting the PQC:

i. Incase Work Order/ Contract is issued by Government Body/ PSU:
Copies of Contract Document (Purchase Order/ Work Order with Schedule of Rates) along with completion certificate issued by client.

ii. In case of Work Order from Private Parties**:**
Certificate from CA certifying value of work done with TDS certificates (where applicable) / Bank Statement shall be required in addition to that specified in (i) above.

Notes:

i. The experience of bidding entity only will be considered. Credentials of parent, subsidiary or any group company shall not be considered.

ii. In case the work orders submitted by the bidder is in multiple currency/ non-INR, proof of remittance shall also be required to be submitted by bidder and the same shall be converted to equivalent INR considering the conversion rate as on the date of issue of the reference order(s) based on SBI TT selling rate. Conversion rate from the above source shall be used uniformly for evaluation of all such bidders participating in the tender.

iii. Being a domestic tender, bids from foreign bidders shall not be accepted.

iv. Experience as sub-contractor:
Whenever a contractor had worked as a sub-contractor to main contractor, their (sub-contractor) experience also can be considered. With regard to sub-contracted work order, the bidder has to submit a certificate from the end user / owner / consultant of the owner acting as Engineer-In-Charge (EIC) stating that the main contractor has intimated them about the engagement of sub-contracting OR have been allowed/ permitted as a subcontractor.

v. In case, the executed value of job is more than work order value and bidder claims for meeting the PQC requirement on the basis of executed value then it is the responsibility of the bidder to submit the documentary evidence of final executed value (such as executed value mentioned in completion certificate etc.) along with his bid.

vi. The executed value of completed work submitted by the bidder shall be considered during evaluation for experience criteria of PQC.

vii. Works executed under EPC/ BOO/ BOOT Contracts containing the components indicated in similar works criteria shall also be considered for the purpose of qualification.

viii. In case any bidder submits work order and completion certificate of any completed contract where the bidder had worked as a leader / member of Joint Venture, the work value shall be worked out as per the percentage share of the bidder in the JV agreement. Further in case the bidder had executed only a certain portion of the composite job through such agreement, his experience shall be counted for that particular portion of the job executed by him only, as specified in the JV agreement. For such cases, in addition to work order and completion certificate(s), bidder shall be required to also submit copy of JV agreement. Work order & completion certificate(s) has to be issued in the name of such JV OR in the name of the Leader with brief details of JV specified in the work order.

ix. If bidder has submitted a composite work order for evaluation and the AMC/CAMC /PWAMC/O&M is going on, after supply and installation part is completed by the Contractor as per completion certificate, the same is to be considered as completed work and the amount towards supply and installation shall be considered for qualifying the bidder in PQC towards experience criteria.

x. For the same project finalized against one tender, if separate orders for supplies and services or variation orders or amendment orders are issued in continuation of the original purchase/work order, then the total value of works completed against the supply & installation components of the original work orders, subsequent variation/ amendment orders put together shall be accepted as one single work completed.

xi. Works carried out at multiple locations through a single Purchase Order or multiple purchase orders finalized against one tender shall be considered as one similar work for the purpose of qualification.

xii. Ongoing contracts (i.e. not successfully completed) shall not be considered irrespective of the value of works completed upto the period mentioned in the tender.

18. <u>Other Commercial documents to be submitted by the bidder:</u>

i. PAN
ii. PF Registration
iii. GST Registration
iv. Partnership deed or Certificate of Incorporation with memorandum & articles of association
v. Power of Attorney / Board resolution in favour of Tender signing authority
vi. Integrity Pact Agreement
vii. Declaration and undertaking on Purchase Preference (PP-MII) Policy
viii. Standard declarations as under, duly filled in and signed:
   - Undertaking by bidders for acceptance of tender terms and conditions *(as per format attached as Annexure-A of Part-B of tender document)*
   - Declaration on NCLT/ NCLAT/ DRT/ DRAT/ Court Receivership/Liquidation *(as per format attached as Annexure-B of Part-B of tender document)*
   - Compliance Certificate regarding bidders from countries which share a land border with India. *(as per format attached as Annexure-C of Part-B of tender document)*
   - Undertaking and declaration for non-tampering of data *(as per format attached as Annexure-D of Part-B of tender document)*
   - Declaration of Blacklisting / Holiday Listing *(as per format attached as Annexure-E of Part-B of tender document)*
   - Declaration “A”, “B”, “C” & “D” *(as per format attached as Annexure-F of Part-B of tender document)*

- Undertaking for business transaction status of bidders *(as per format attached as Annexure-G of Part-B of tender document)*
- Particulars of Bidder *(as per format attached as Annexure-H of Part-B of tender document)*
- Undertaking on no multiple bidding *(as per format attached as Annexure-I of Part-B of tender document)*
- Declaration and undertaking on Purchase Preference (PP-MII) Policy *(as per format attached as Annexure-J of Part-B of tender document)*

19. EVALUATION CRITERIA

19.1 **Techno Commercial Evaluation:** Bidders shall be evaluated for technical qualification as per the above criteria. Price bids of only those bidders who qualify in techno-commercial parameters shall be opened.

19.2 **Financial evaluation:**

i. Bidder has to submit their prices in the Price Bid "BOQ" format attached with the tender. Bidder has to quote %ge above/ below/ at par w.r.t. to estimated cost indicated in the BoQ.

ii. Bidder has to subsequently participate in Reverse Auction process. Reverse Auction will be conducted for finalizing this Tender.

iii. Lowest quote available after Reverse Auction shall be treated as L-1 rate. The tender shall be financially evaluated on overall lowest cost to IOCL.

iv. In case of tie between two or more bidders at L-1 position after reverse auction, all the L-1 bidders shall be asked to submit in sealed envelope, discount bid, which shall be in terms of percentage discount over the amount quoted by the bidder in the original price bid of the tender. These sealed envelopes shall be opened at a defined date & place and all such L-1 bidders shall be advised to witness the opening of the discount bids.
In case there is a tie again, the bidder with the highest turnover worked out to three decimal points in any of the last three financial years as submitted against Turnover Criteria shall be considered as L1 bidder.
In the event of bidder submitting turnover documents for only one or two years, L-1 shall be decided on the basis of turnovers submitted.
In an exceptional case where turnover is also same or in case of start-ups bidders, the bid submitted earlier in the portal in terms of both date and time shall be considered for award of job.

v. Negotiations shall not be conducted as a matter of routine. However, Corporation reserves the right to conduct negotiations.

vi. Inline with latest PPMII policy, bids from only Class-I and Class-II local supplier shall be considered for further evaluation. Bids from non-local supplier shall not be considered for further evaluation as per latest PPMII guidelines. Purchase preference shall be given to Class I local supplier only as per PPMII policy.

vii. For the purpose of extending benefits as per PPMII Policy, the latest quote of respective bidder(s) after the tender-cum-auction process shall be considered. The quoted price by natural L-1 bidder after reverse auction shall be considered as base L-1 price for determination of purchase preference.

viii. The subject tendered work is non divisible in nature. 'Class-I local supplier' shall get purchase preference as per following procedure:

- Among all technically qualified bids, the lowest bid will be termed as L1. If L1 is 'Class-I local supplier', the contract will be awarded to L1.
- If L1 is not 'Class-I local supplier', the lowest bidder among the 'Class-I local supplier' will be invited to match L1 price subject to Class-I local supplier's quoted price falling within the margin (20%) of purchase preference, and the contract shall be awarded to such 'Class-I local supplier' subject to matching the L1 price.
- In case such lowest eligible 'Class-I local supplier' fails to match the L1 price, the 'Class- I local supplier' with the next higher bid within the margin (20%) of purchase preference shall be invited to match the L1 price and so on and contract shall be awarded accordingly. In case none of the 'Class-I local supplier' within the margin (20%) of purchase preference matches the L1 price, the contract may be awarded to the L1 bidder.

ix. No purchase preference shall be provided to MSEs, Startups, NSIC, PSU (State & Central) & JVs of IOCL.

x. Notwithstanding any other condition/ provision in the tender documents, bidders are required to submit complete documents pertain to PQC along with their offer. Failure to meet the PQC will render the bid summarily rejected. IOC reserve the right to complete the evaluation based on the details furnished by bidder, with (or) without seeking any additional supporting documents/ clarifications.

xi. IOCL reserves the right of cancellation of the tender without assigning any reasons whatsoever.

20. Insolvency & Bankruptcy Code 2016: Please read the following in conjugation with relevant clauses in Part-B of this tender document.

Bidders shall submit declaration on proceedings under Insolvency and Bankruptcy Code, 2016. Offer will not be considered of bidder(s) in the following cases:

- If insolvency resolution process has commenced (viz. application has been admitted by Adjudicating Authority and moratorium has been imposed and IRP has been appointed) or liquidation or bankruptcy proceedings have commenced in respect of bidder in terms of Insolvency and Bankruptcy Code, 2016 or any other applicable law (in cases where code is not applicable) at any stage of evaluation of bid.

- In case where the bid of the L-1 bidder is rejected on the aforesaid grounds during the period between Price-Bid-Opening and Award of Contract, the bid of the next higher eligible bidder will be considered for further processing. EMD of such bidder shall be returned.

21. Business Transaction Status of Bidders: Please refer Part-B of this tender document.

22. Reverse Auction Process: Please refer Part-B of this tender document.

23. Guidelines with respect to countries sharing land border with India: Please refer Part-B of this tender document.

24. OTHER POINTS:

24.1 Bidders are requested to go through the "Bidders Manual Kit" available in the homepage of the e-tendering portal i.e. https://iocletenders.nic.in to have a clear understanding of the steps to be followed for bid submission. The "Bidders Manual kit" is for general reference only and the Bidders have to abide by the terms and conditions of this tender.

24.2 Any Addendum/ Corrigendum/ Sale Date Extension in respect of the tender shall be issued on our website https://iocletenders.nic.in only & no separate notification shall be issued in the press. Bidders are therefore requested to regularly visit our website to keep themselves updated.

24.3 Bidders must also note that before the bid is uploaded, the bid comprising of all attached documents should be digitally signed using digital signatures as specified in the tender. Bidders should submit their bids as per the format attached with the tender duly filled in and digitally signed. Wherever required, the same shall be submitted on their letterhead. If any other communication or terms and conditions are being attached by the bidder in the tender document, the same shall also be on bidder's letterhead.

24.4 Indian Oil reserves the right to revise/extend any Date/time from schedule timelines of published tender.

24.5 All bidders must login and visit their DASHBOARD on regular basis to get the timely updates related to any communication sent in the form of e-mail/SMS by system.

24.6 Legal dispute, if any, arising during the evaluation of the tender shall be within the jurisdiction of local courts.

a) For disputes up to stage of LOA – Court(s) in Mumbai
b) For disputes during execution stage – Court(s) in Chennai.

24.7 Bidders may note that the following are attached separately and uploaded in the e-tendering portal:

i. Special Instructions to bidders for participating in e-tendering
ii. FAQ's –online EMD facility in IOCL e-tendering and
iii. Format for Acceptance of Tender Terms and Conditions

24.8 Bidder has to commit adoption of the Integrity Pact Program of IOCL through executing an Integrity Agreement and declarations.

24.9 It is mandatory for every tenderer to provide all the information as set out in the tender document irrespective of their earlier association with IOCL. Any conditional / incomplete offer or failure to follow above instructions may lead to disqualification.

24.10 In case the work orders submitted by the bidder is in multiple currency/ non-INR, the same shall be converted to equivalent INR considering the conversion rate as on the date of issue of the reference order(s) based on SBI TT selling rate or RBI/ Other scheduled bank/ Customs Notified exchange rate. Tender should contain a clause that conversion rates from the above sources are to be used uniformly for evaluation of all bidders participating in the tender.

24.11 Tenderers are advised not to send / upload un-necessary / unsolicited / additional documents. The same will not be evaluated.

24.12 Physical/ Manual Bids shall not be accepted. Bids shall be accepted only though e-Tendering portal. No manual bid shall be permitted along with electronic bids. In case of receipt of manual bids (apart from offline documents specifically requested in the tender), the same shall be returned to the bidder. Additional documents received through email shall also be ignored for the purpose of evaluation, unless specifically

advised by the Tender Issuing Authority. It may please be noted that since this is an e-Tender, tender documents can only be downloaded and bidding documents can only be submitted in the manner specified in 'Special Instructions to bidders for participating in e-tender' attached separately in this tender.

24.13 Tenders to note that price must be quoted only in the price schedule (BoQ) document. Disclosure of any price or rate in any manner other than in the price bid may lead to disqualification of the bid.

24.14 IOCL shall not be bound to accept lowest or any tender and reserve the right to accept one or more tenders in part. The decision of IOCL in this regard shall be the final.

24.15 IOCL reserves right to reject any or all of the tenders or in part of a tender so received, without assigning any reasons and no compensation shall be paid for the efforts made by the bidder.

24.16 IOCL also reserves the right to abandon the tender process without assigning any reason thereof. No compensation shall be paid for the efforts made by the bidder.

24.17 No bidder shall contact IOCL on any matter relating to its bid from the time of the bid opening up to the time that the contract is awarded. Any effort by a Bidder or Bidder's agent, consultant or representative, howsoever described to influence IOCL in any way concerning scrutiny, consideration, evaluation or computation of the Bid(s) or decision concerning award of contract shall entail rejection of Bid.

24.18 Tenderers will have to attend concerned office of IOCL for negotiations / clarifications as required in respect of their quotation without any commitment from IOCL.

24.19 Any sort of canvassing by the tenderer or submission of forged or false documents / information by any bidder shall make the offer invalid.

24.20 Consultant appointed for the project/ job shall not be allowed to participate in the tender either directly or indirectly.

24.21 Affiliates of a firm are not permitted to make separate bids directly or indirectly. Two or more parties who are affiliates of one another can decide which affiliate will make a bid. Only one affiliate may submit a bid. If two or more affiliates submit a bid, then all of them are liable for disqualification.

24.22 Invalid Tenders/ Tenders liable for rejection: Tender is invalid and shall be rejected in the following circumstances:

a. Does not fulfil minimum qualification criteria prescribed in the tender documents.
b. In case the bidder misrepresents facts or submits, forged, false or fabricated document.
c. Bidder is holiday listed as per prevailing holiday listing guidelines.
d. Bidder is banned for participation in tenders for a specific period as per CPE guidelines wherever applicable.
e. If insolvency resolution process has commenced (viz. application has been admitted by Adjudicating Authority and moratorium has been imposed and IRP has been appointed) or liquidation or bankruptcy proceedings have commenced in respect of bidder in terms of Insolvency and Bankruptcy Code, 2016 or any other applicable law (in cases where code is not applicable) at any stage of evaluation of bid.
f. Non-withdrawal of conditions imposed in tender document & conditions imposed during negotiations subsequent to price bid opening.

g. A bidder who offers unsolicited reduction in the price offer whether before or after the opening of the price part of the tender(s)/bid(s) shall be liable to have his/its/their bid(s) rejected. Bidders may, however, at any stage offer a reduction if such reduction is solicited or if the OWNER gives the Bidder an opportunity to offer such reduction.
h. No Suo–motto reduction in prices quoted by the bidder shall be permitted after opening of the bids. If any bidder unilaterally reduces the prices quoted by them after opening of bids, the bid of such bidder will be summarily rejected.

Tender is also liable for rejection if the bidder:

a. If the Earnest Money Deposit/ Bid Security Declaration is not deposited or exemption document (if applicable) is not uploaded before closing date and time of tender
b. Stipulates the validity period of the bids lesser to what is stated in the tender document.
c. Quotes the rates or prices in documents other than price bid documents (for two-bid tenders).
d. Stipulates his own conditions and refuse to withdraw them.
e. Does not disclose the full names and addresses of all his partners in the case of a partnership concern.
f. Does not fill in and sign the tender acceptance formats as specified in the tender.
g. Does not have his PF Code/ number from the Regional Provident Fund Commissioner (In very small tenders, where estimated value is less than Rs. 5 Lakh, PF may not be needed). However, PSUs / organizations having their own PF trust / Govt. PF are considered 'At Par' with the bidders registered with the PF authorities, the necessary documentary evidence shall be submitted along with the bid.
h. If the bids are partly quoted
i. If the bids contain unacceptable terms and conditions.
j. Any discrepancy done with the BOQ uploaded on the e-tender portal.
k. If in any of the previous tenders, it was found that the bidder is Noncompliant to taxation laws and statutes.
l. Offer from following types of bidder will not be accepted
   - Who are under liquidation, court receivership or similar proceedings.
   - Whose insolvency resolution process or liquidation or bankruptcy proceeding is initiated under the Code or any other applicable law (in case where Code is not applicable) at any stage of evaluation of the bid. In case where the bid of the L-1 bidder is rejected on the aforesaid grounds during the period between price-bid-opening and award-of contract, then the bid of the next eligible bidder will be considered for further processing.
   - Consultant or their subsidiary company or companies under the management of consultant for execution of the same project for which they are working as consultant.
   - Foreign bidders participating in domestic /national tender.
   - Offer from joint bidders / consortium, unless specifically permitted in the tender for such bidding.

24.23 In case of any conflicting clauses mentioned in Part-A of tender document vs Part-B of tender document, clauses mentioned in Part-A shall prevail.

ANNEXURE – 2

INSTRUCTIONS TO TENDERERS AND PARTICULAR CONDITIONS OF CONTRACT

1.0 Each tenderer/bidder shall give a declaration in the prescribed format annexed to the Tender that he/it/they is/are not under any blacklist.

1.1 If a tenderer is on any such List or if any such inquiry is pending against it/him/them or if the Bidder makes a false declaration, the OWNER reserves the right to reject the Bid, and if the Bid has resulted into a contract, the contract is liable to be terminated pursuant to the provisions of Clause 7.0.1.0 of the General Conditions of Contract.

2.0 EARNEST MONEY DEPOSIT:

2.1 The tenderer shall, as a condition for the consideration of the tender, pay the sum specified in NIT in the manner specified therein. The tender is liable to be rejected for failure to deposit money in the manner aforesaid.

2.2 The Earnest Money of unsuccessful tenderer(s) shall be refunded without interest as per below modalities:

- EMD of bidders disqualified during techno-commercial bid evaluation shall be released within 30 days of approval of price bid opening.
- EMD of bidders qualified in the techno-commercial bid but unsuccessful in the price bid stage shall be released within 30 days of issuance of order/ LoA.
- EMD of the successful bidder shall be released after receipt of an acceptable SD (if applicable) or on order acceptance, wherever SD is not applicable.
- Wherever SD is not applicable, EMD of the successful bidder shall be returned after complete execution of the order.
- In case bidder has been holiday listed before award of work.

2.3 Forfeiture of EMD:

Earnest Money shall be forfeited in the following circumstances:

i. In case the bidder tampers the tender document, alters / modifies / withdraws the bid suo-moto after opening the bids (Technical bids in case of two bid system) within the validity period.
ii. In case the bidder submits false/fraudulent/fake/ forged documents.
iii. In case the tender is accepted, and the contractor fails to deposit the ISD/SD or to execute the contract.
iv. In case of failure of the bidder to get the documents verified as per the specified time schedule in the tender. (Where verification is done through the Original Document Verification process)

In (i) and (ii) above the tender submitted by the bidder shall be rejected. In all the above cases suitable action may be taken which may include EMD forfeiture and / or holiday listing action as per the discretion of IOCL. Earnest Money Deposit forfeited for all such bids shall not be by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids.

The above shall be read in conjugation with relevant clause in Part-B of this tender document.

2.4 The Earnest Money deposited by a successful tenderer shall be forfeited if the successful tenderer fails to deposit or furnish the requisite initial Security Deposit as specified in the General Conditions of Contract and/or fails to commence work at each job site within 15 (fifteen) days of handing over the job or any part thereof to him and/or fails to execute the contract in accordance with the Form of Contract within 15 (fifteen) days of receipt of Letter of Acceptance in this behalf from the OWNER or within such extended period as may be permitted by the OWNER for the purpose.

2.5 (a) Tenderer who has submitted his/it/their bid shall not be permitted to alter/amend or withdraw his/it/their bid after submission of bid, notwithstanding that the bid(s) has/have not yet been opened.

(b) Tenderer who purports to alter/modify or withdraw his/its/their bid/offer after submission, within the period during which he/it/they promised to keep his/its/their bid valid, shall be liable to have his/its/their tender rejected and his/its/their Earnest Money deposit or Bank Guarantee submitted by way of earnest money forfeited/ encashed.

(c) Bidder who offers unsolicited reduction in the price offer whether before or after the opening of the price part of the tender(s)/bid(s) shall be liable to have his/its/their bid(s) rejected. Bidders may, however, at any stage offer a reduction if such reduction is solicited or if the OWNER gives the Bidder an opportunity to offer such reduction.

3.0 SECURITY DEPOSIT:

3.1 As per the clause 2.1.1.0, Section- 2 of the GCC, the successful tenderer shall within 15 days from the date of Work Order / Letter of Acceptance have to make payment against Security Deposit as detailed below:

(a) Security Deposit amount shall be equivalent to **10%** of the value of the purchase / work order (exclusive of GST).

(b) Security Deposit can be paid in any of the following modes:

i) Initial security deposit: The successful tenderer within 14 days of receipt of acceptance of tender issued by owner, shall deposit initial security deposit in an amount equal to 2.5% (Two and Half percent) of the total work order value (exclusive of GST) in any of the following modes:

- By online mode (IMPS/ NEFT/ RTGS)
- By Bank Guarantee(s) in the prescribed form as included in the Tender Documents, from a Scheduled Bank in India acceptable to the OWNER, provided the amount covered by such Bank Guarantee is not less than Rs.1,00,000 (Rupees One Lakh only). This Bank Guarantee shall be valid upto a period of 3 (three) months beyond the end of the Defects Liability period.

Balance security deposit will be recovered at the rate of 10% of gross certified value of work from incoming running bills till such time entire security deposit of total contract value is recovered.

OR

ii) BANK GUARANTEE (Only if the quantum of security deposit is in excess of Rs. 1 Lac): Amount of security deposit (full 10% of total contract value worked out as per the above basis) should be covered by BG as per the format issued by the Corporation and should be submitted prior to commencement of work. The BG will be valid for a period of 3 months beyond the defect liability period. This BG shall be submitted directly by the bankers under their covering letter to the office of the Corporation in a sealed cover.

(c) No claim shall lie against the Corporation in respect of interest on cash deposit or depreciation thereof. The Corporation shall be entitled to deduct from the deposit any loss or damage which the Corporation may be put to by reason of any act or default recoverable by the Corporation from the contractor and to call upon the contractor to maintain the deposit at the original limit by making further deposits.

(d) In the event of the contractor failing to make and maintain a security deposit in the manner aforesaid, be liable to forfeit any moneys lodged with the tender by him and the Corporation shall be entitled to cancel the acceptance of the tender.

(e) If requested by party, EMD can be converted to SD provided EMD is paid in online mode as specified in tender.

(f) **Refund of security deposit:**
Security Deposit shall be returned after completion of defect liability period. Defects, if any, observed in the works shall be rectified by the contractor before completion of defect liability period.

(g) **Forfeiture of SD:** All sums of compensation or other sums of money payable by the contractor may be deducted from SD. In the event of SD being reduced from the original quantum due to recoveries as aforesaid the contractor shall within 15 days of recoveries, make good deficiency in SD either by cash or by way of Demand Draft.

4.0 ACCEPTANCE OF BG:

(a) Bank Guarantee for value up to Rs Two Crores can be accepted if it is issued by an Indian Branch of any Scheduled Bank appearing in the Second Schedule to the RBI Act of 1934.

(b) BG for value above Rs Two Crores can be accepted is it is issued by an Indian Branch of

i. Any Nationalized / PSU Bank appearing in the Scheduled Banks list

or

ii. Any Scheduled Bank (other than a Nationalized / PSU Bank) having at least Desired Credit rating at the time of acceptance of the BG.

Bank	If the Tenor of BG is more than 1 year, credit rating of	If the Tenor of BG is up to 1 year, credit rating of
In case of foreign banks	'A' of Moody's or equivalent	'P-1' of Moody's or equivalent i.e, highest short term rating
In case of Indian Bank	'AA' of CRISIL or equivalent	'A-1+' of CRISIL or equivalent i.e. highest short term rating.

(c) Apart from above, BG, irrespective of its amount, issued by any other bank including non-schedules banks, foreign branches of scheduled banks and foreign branches of foreign banks, can be accepted provided such BG is confirmed/counter guaranteed by any bank mentioned above at para (b).
Merely signing or endorsing or forwarding the BG by the scheduled bank does not amount to counter guaranteeing. A proper document executed on a non-judicial stamp paper of appropriate value with specific reference to the BG being counter guaranteed is essential.

(d) BG may be sent directly either by bank or the vendor through any mode (Registered Post/ Speed Post/ Courier or by hand).

(e) BG details are to be transmitted electronically through Structured Financial Messaging System (SFMS) from the BG opening bank to the beneficiary's (IOCL) bank in a specified message format. IOCL Bank details shall be obtained by the successful bidder for this purpose.
However, it is essential to send the BG in the specified format in physical form on which stamp duty is paid, i.e., BG printed on a stamp paper as SFMS is only for confirming the authenticity of the BG.

(f) As on date, the following are the credit rating agencies approved by SEBI:
(i) CRISIL Limited (www.crisil.com)
(ii) Fitch Ratings India Private Limited (www.fitchratings.com)
(iii) ICRA Limited (www.icra.in)
(iv) Credit Analysis & Research Ltd. (CARE) (www.careratings.com)
(v) Brickwork Ratings India Private Limited (www.brickworkratings.in)
(vi) SME Rating Agency of India Ltd. (SMERA) (www.smera.in)

5.0 VALIDITY OF RATES: The quoted rates shall be valid for a period as mentioned in NIT for Corporation's acceptances and for the successful tenderer, till completion of contract in all respects. No escalation shall be entertained at any stage of the contract.

6.0 CLARIFICATIONS / NEGOTITIONS: Queries in excel work sheet shall be submitted two working days before the "Scheduled Pre bid meeting date", in the format listed below:

Sl. No.	Tender Page & Clause No.	Tender Condition	Deviation / Clarification / Exception/Assumption

7.0 ACCEPTANCE OF WORK ORDER BY CONTRACTOR:

7.1 After communication of the Corporation's acceptance of the tender, if the tenderer fails to return the duplicate copy of the Work Order and the Agreement duly signed in token of their acceptance within 15 days, the Earnest Money Deposited may be forfeited by the Corporation, without any further reference to the contractor.

7.2 On acceptance of the quotation, the successful contractor will have to execute an agreement with the corporation covering all aspects of the contract in standard format (attached with tender), immediately before commencement of the works. The intending tenderers should acquaint themselves with the provisions of standard agreement prior to quoting.

7.3 When the party signing the agreement is not the sole proprietor, necessary power of attorney authorizing the person who is acting on behalf of the firm should be produced before execution of the agreement.

7.4 If the Contractor does not start the work by the above stated period and if the Corporation is not satisfied with the reason for not starting the work in time or if Contractor refuses to carry out the work due to any other reason, the Corporation can cancel that work order by giving a Registered Notice after the expiry of the specified period as per the order and the same work shall be carried out by any other Contractor at the entire risk and cost of original Contractor.

7.5 In the event of such cancellation, the ISD/SD for the subject work, Earnest Money Deposit and/or Permanent Earnest money Deposit will be forfeited and the empanelment of the contractor in all categories shall be cancelled forthwith, without any further intimation to the contractor. In addition the Corporation also reserves the right to holiday list the contractor in the event of such default.

8.0 AGENTS / MIDDLEMEN: There should not be any middleman/agent involved in the contract and no agency commission charges shall be payable.

9.0 EXECUTION OF AGREEMENT: On acceptance of quotation, the successful Tenderer will have to execute an Agreement with the Corporation covering all aspects of the Contract in the standard form, immediately before commencement of work.
The intending tenderers should acquaint themselves with the provisions of standard agreement before quoting.

10.0 POWER OF ATTORNEY: Necessary power of attorney authorizing the person who is acting on behalf of the firm should be produced before execution of the agreement. Authority of the person uploading the bids with his DSC shall be required to be submitted in the bid. Document showing the authority of the person uploading & submitting the bid with his Digital Signature Certificate shall be as given in the following table:

In case of proprietary concern	If the bid is submitted by the proprietor, no POA required. However, he will upload undertaking certifying that he is sole proprietor. If the bid is submitted by person other than proprietor, POA authorising the person to submit bid on behalf of the concern
In case of Company	Certified copy of Board Resolution authorising the person submitting the bid on behalf of the Company OR POA and the supporting Board Resolution authorising the person submitting the bid on behalf of the Company
In case of Partnership Firm/LLP	POA along with Deed of Partnership/LLP Agreement
In case of Co-operative Society	Copy of resolution passed as per Society Rules

11.0 EXECUTION OF WORK:

11.1 The successful tenderer shall submit before starting work, on receipt of Work Order a detailed execution programme adhering to the completion time quoted in Purchase Order. The programme thus submitted shall form part of the Contract and shall be binding on the Vendor.

11.2 However, the Corporation reserves the right to alter the programme, if necessary from time to time. No claim whatsoever of the Vendor on this account shall be entertained by the Corporation.

11.3 All facilities for inspection of the materials and subsequent inspection of work by our Engineers/Inspection Agencies must be made available by the tenderer.

11.4 The successful Contractor shall abide by the rules, regulations, bye-laws and statutory requirements etc. imposed by the Govt/Semi-Govt and other Local Bodies such as Municipalities etc. for the execution of this tender.

12.0 PROCUREMENT OF MATERIALS: It shall be contractor's responsibility for procurement of all material/equipments etc. The Corporation will entertain no delay due to non-availability of any material/equipments.

13.0 REVISIONS: The Corporation reserves the right to revise the specifications, drawings and designs at any stage of work. Such deviations shall be adjusted at the rates already contained in Work Order or at prevailing market rates, if the rates are not available in the Work Order.

14.0 PROGRESS REPORT OF WORK: Contractor shall submit Progress Report of their works on fortnightly basis to the concerned office.

15.0 PRICE ADJUSTMENT FOR DELAY IN COMPLETION OF WORK: If the contractor does not complete the work within prescribed time limit given in the Work Order, the Corporation may give from time to time such extension of time limit without prejudice to the Corporations right to recover Price Discount as per the terms and conditions given in the General Conditions of Contract / Agreement.
Vendors shall have to reflect the above price discount in the tax invoice issued by him or provide credit note to IOCL. GST on the penalty amount will be recovered extra as applicable.

16.0 STUDY OF TENDER DOCUMENTS AND VISITS TO SITE: Tenderers should study the tender documents carefully before quoting. The tenderers should also visit the site and acquaint themselves with site conditions. The tenderers are also expected to know about the availability of water, power, approach road cum- construction materials, as per our specifications and any/ all other ancillary facilities since these are to be provided / arranged by the tenderers (unless otherwise specified) at their cost to execute the works. All these factors must be taken into account.

17.0 MATERIALS/ EQUIPMENTS: All materials required for execution of work must be got approved by our site representative before they are brought to the site and also before being actually put to use. All facilities for prior inspection of materials and subsequent inspection of work by our site engineer must be made available.

Materials without approval:

a. Any material brought without prior approval will be entirely at the risk and cost of the contractor.
b. If contractor brings defective/ sub standard materials to site, it shall be the responsibility of the contractor for the removal and disposal of the same at his cost. The corporation shall not entertain any claim from the contractor in this account in case the contractor fails to remove such materials within 15 days after issuing notice in writing to the contractor. Corporation reserves the right to dispose such materials at the entire risk and cost of the contractor.
c. Work order quantities are approximate and payment shall be made as per actual measurements. The contractor is not entitled to for any sort of compensation towards materials procured/ stored in excess of the measured quantity if any.
d. Excess quantities over and above that mentioned in the work order or extra items or deviation in work order should not be carried out by the contractor unless he has been asked to do so in writing and if carried out without such written approval, the same will be at risk and cost of the contractor.
e. Detailed measurement of works carried out shall be jointly taken by the contractor and our site engineer at every stage of work before proceeding to the next stage as per relevant clauses of GCC.
f. Entire works shall be carried out under the supervision of the authorized representative of the corporation.

18.0 PROCUREMENT OF MATERIALS: It shall be contractor's responsibility for procurement of all materials/ equipment etc and no delay due to non- availability of any materials/ equipments will be entertained by the corporation**.**

19.0 CORPORATION'S RIGHT: The corporation reserves the right to increase/ decrease the tendered quantity of any or every item and delete any item at any stage of work at the accepted rates. The contractor's claim for compensation or damages on account of these shall not be entertained.

20.0 CANCELLATION OF ORDER: If the performance of the successful Vendor is found to be unsatisfactory, the Corporation reserves the right to cancel in part or whole, the Contract and purchase the same items through alternate means at the entire risk and cost of the Vendor on whom the order was first placed. In such cases, the Vendor should make good all the losses that the Corporation may incur due to the Vendor's failure.

21.0 ABANDONMENT OF WORK: In case the contractor abandons the work in spite of our notice, the corporation shall issue the final notice to the contractor to remain present at site for taking final measurements and in case the contractor does not report at site on due date and time as per the Corporation's notice, the corporation's representative will take unilateral measurements of abandoned work which will be binding on the contractor and the balance work will be carried out by any agency appointed by the corporation at the entire risk and cost of the contractor.

22.0 WORKS IN OPERATING PLANT, TERMINAL, INSTALLATION, DEPOTS.

If the work is required to be performed in the working terminals, depots, installations, under such circumstances, the progress of work is likely to be interrupted on account of the operations of the depot/ terminal/ RO/ consumer outlet etc. The work may at certain times have to be stopped on the instructions of our site representative. Under such circumstances, the contractor should co-operate with corporation to avoid hindrance to the operations of the depot/ terminal/ installation. The working hours will be adjusted as per the corporation's representative, from time to time. Rules and regulations of the depot/ installation/ terminal shall be strictly followed by the contractor.

The stoppage of work due to any reasons mentioned above shall not entitle the contractor for any claim of compensation whatsoever for idling of his labor/ machinery etc during such interruptions.

23.0 DAMAGE TO EXISTING FACILITIES: Any damage caused to existing facilities while carrying out the work shall be made good by the contractor to our entire satisfaction at his own risk and cost. During execution of work if it is found necessary to dismantle a portion of existing bund wall, enclosure wall in the tank farm to facilitate the movement of materials and equipment, the same shall be made good at the contractor's own cost after completion of work.

24.0 STATUTORY RULES AND REGULATIONS: The contractor will abide by the rules, regulations, bye laws and statutes etc. imposed by the government/ semi government and other local authorities for execution of this job.

25.0 LABOUR AGREEMENT: The Contractors who are working in the establishments through Contract Labour shall be fully responsible for observance of all rules and regulations as per the Contract Labour (Regulation and Abolition) Act 1971 and obtain a licence from the Assistant Labour Commissioner concerned and produce the same to IOCL. In this connection, tenderers shall abide by all the conditions of the GCC. The Principal Employer certificate shall be given on written request from contractor by IOCL.

26.0 SECURITY OF CONTRACTOR'S MATERIALS: Corporation shall not be responsible for security of contractor's materials/ equipment.

27.0 OBSERVATION OF RULES: In case the contract works is to be done within the terminal/ depot/ installation/ AFSs, the contractor shall have to observe all local rules for safety/ security/ gate passes etc as advised by the location-in-charge/ site engineer.

28.0 STORAGE SPACE: No covered space shall be released for storage/ stacking of contractor's materials. The contractor shall make his own arrangement for the same.

29.0 SAFETY: Since works have to be carried out in a running LPG terminal, the contractor should ensure that day to day operations, safety and security of the location are not affected in any way on account of the works being carried out. In case of any damage to our properties due to the negligence on the part of the contractor or their workmen, the contractor will be held responsible and liquidated damages as assessed by the corporation would be recover from them.

When hot works are involved, the following safety precautions have to be strictly observed before commencement of works.

i. All hot works operations should be carried out under the supervision of our representative and also under the supervision of responsible representative of the contractor.
ii. All hot work operations should be undertaken only after issue of hot work permits by the location in charge on day to day basis.
iii. It should be ensured that the tanks, pipes, containers where the hot work is required are gas freed and properly checked to this effect with explosive meters.
iv. It should be ensured that the surrounding area is free from oil, rags, oil spillage and other sources of ignition and the area is cleaned/ sprinkled with sand or dry earth. It should also be ensured that metallic trays filled with DCP powder are kept for collecting the welding arc/ hot metal cutting.
v. Hot work should commence only after positioning the portable fire extinguishers and sand/ dry powder in readiness at site and hydrant system made available at the nearest point.
vi. Match boxes, lighters etc used for hot work should be kept in the custody of the supervisor only.

vii. If hot work has to be carried out in a place close to storage tanks or any other facility under operation, it is necessary to provide screen wall made of AC sheets to segregate the area to prevent sparks traveling to the hazardous area.

viii. It should be ensured that no workmen carry match boxes or any other source of ignition with them while entering the premises or inside the premises. After the hot work operation of the day, the following precaution should be taken.

a) Welding sets should be switched off and power mains disconnected. If the connection is taken from a temporary switch board the fuse carriers should be removed and handed over to the supervisor.
b) Gas cylinder and the cutting sets should be properly closed and the equipment removed to a safe place.
c) The site of work should be examined to ensure that it is free from hot splatters and any other source of ignition.
d) All the work men of the contractors should be moved out of the premises.

25.0 METHOD OF WORK: As stated in the general conditions of contract, the contractor shall carry out works as per directions in the work order. The contractor shall not undertake on his own any change in the specifications mentioned in the tender documents and work order. In case of doubt, the contractor will refer the matter in writing and the contractor shall carry out the item of work as per clarifications given. In case of delay in getting such clarifications, the contractor will not be entitled for any claim on any account of idling of their labourers, machinery etc. In case the contractor carries out the work as per his own specifications not acceptable to the corporation in such cases, the same will be required to be redone as per the specifications given by the corporation at the contractor's risk and cost. In case of failure to re-do the work by the contractor, the corporation reserves the right to get it done through any other agency entirely at the risk and cost of the contractor.

* * * * *

ANNEXURE – 3

SPECIAL CONDITIONS OF CONTRACT

1.0 **Tender fee:** Not Applicable.

2.0 **Earnest money deposit:** Please refer NIT.

3.0 **Completion Time:**
Please refer NIT.

The time period for completion of works shall be as per NIT, failing which price adjustment for delay in completion shall be made inline with tender conditions. This will be in addition to and without prejudice to the other rights available to the Corporation under the contract.

In case the contractor fails to adhere to the time limit specified above or if the rate of progress is considered not satisfactory, the Corporation will be at liberty to terminate the contract and get the same executed by any other agency entirely at the cost including statutory levies and risk of the original contractor.

4.0 These special conditions of contract shall be read in conjunction with the technical specifications, drawings, instructions to tenderers, GCC and any other document forming a part of the tender, wherever the tender so requires.

5.0 **NATURE AND SCOPE OF WORK:**

5.1 Project Background:

IOCL is constructing a captive POL / LPG Jetty at Kamarajar Port at Ennore near Chennai, Tamil Nadu. Propane / Butane from this jetty shall be imported and transferred to nearby LPG Import terminal of IPPL. Works for construction of Jetty and allied piping works are already in progress under which 2x18" Propane / Butane insulated pipelines are being laid upto a hookup point within the boundary wall of KPL premises (please refer detailed piping GAD P.011265-G-11050-P050 attached separately in tech specs document).

These lines shall be hooked up (through Hot Tapping method) with the existing operative Propane / Butane pipelines of IPPL passing outside the KPL boundary wall by laying additional section of pipelines including crossing the boundary wall and roads adjacent to boundary wall through Horizontal Directional drilling. Manifold arrangement shall be provided as per the P&ID and piping GAD attached with the tender.

5.2 Summary of Scope of Work:

The scope of work for this tender has been detailed under other sections (including specifications and drawings) attached with the tender. Bidders shall refer to the respective documents for the details. However, for the sake of clarity of bidders, the total scope of work is broadly summarized below.:

i. Fabrication, Erection, Laying of propane / butane pipelines with insulation as per the site requirement. Crossing of boundary wall and adjacent roads leading upto IPPL lines through Horizontal Directional Drilling. The scope includes supply of all materials including various sizes of pipes (excluding bare 18" Propane / Butane pipelines which shall be free issued by IOCL), pipe fittings, valves, MOVs, instruments, casing pipes, insulation, insulators etc complete as per detailed scope and site requirements.
ii. Pipeline painting and insulation works.
iii. Hot tapping into operational Propane / Butane pipelines including supply of necessary equipments as per detailed scope and site requirements.
iv. Construction of Pipeline pedestals and other civil works for site preparation, area development etc complete as per detailed scope of work and site requirement.
v. Associated structural works
vi. Associated electrical works like area lighting, cabling, earthing, power supply & distribution for lights, MOVs etc including supply & erection UPS, Power distribution boards, JBs, cables, trays, lights, earthing materials etc as per detailed scope and site requirement.
vii. Associated Control, Instrumentation & Automation works like supply & erection of field instruments, impulse tubing/ piping, hookup, cabling and termination and interfacing of associated signals from MOVs / field instruments with Jetty DCS including supply, erection & commissioning of RTUs etc completed as per detailed scope and site requirement.
viii. Design, Supply, Installation, Testing and commissioning & Monitoring of the Permanent Cathodic Protection [CP] system for underground section of pipelines.
ix. Any other associated works as per SOR, detailed scope attached with the tender and requirement at site for completion of works in totality.

The above is only brief summary of scope of work. However bidders are required to go through detailed scope of work mentioned elsewhere in the tender for further clarity.

All the works shall be carried out as per the drawings and instructions of Engineer-in-Charge. Any associated work required for completion of the work shall be carried out by the vendor. After completion of work, site clearance shall be done to the satisfaction of Engineer-in-Charge.

All necessary tools and tackles including scaffolding etc required for the works shall be in bidder's scope.

Breaking/ removal/ re-routing of any obstruction like civil construction, walls, poles/ piping etc for carrying out the works shall be in bidders' scope. The same to be re-constructed/ made good in pre-demolished / pre-altered condition to the satisfaction of permission issuing authority / IOCL Site In-Charge.

Since the works shall be carried out in an operational area, strict adherence to safe practices to be maintained. Preparation of Job Safety Analysis, obtaining necessary permissions and work permits from IOCL/ Port Authorities etc for carrying out above-mentioned works shall be in bidder's scope.

Obtaining necessary gate passes from IOCL/ Port Authorities for manpower, tools and tackles, all necessary materials and vehicles shall be in bidder's scope.

The works involve hooking up with existing operational propane / butane pipelines and any complete shutdown of operations shall not be feasible for the said hookup. Temporary halting of operation may also not be available in one stretch. Hence works may be required to be carried out in split schedule. Bidder to take the same into consideration while quoting.

Usage of all necessary PPE like safety shoes, helmets, safety belts, harnesses, IFR suits, etc. to be ensured by the bidder.

Adherence to statutory requirements like contract labour license, minimum wages etc to be ensured by bidder.

Note: In case of any dispute/ discrepancy arising out of interpretation of drawing, SOR, tender document, the decision of IOCL shall be final and binding.

6.0 SITE VISIT:

The bidder is advised to visit and examine the site of works including pipeline route and examine the Right-of-Way (ROW) and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the bid and entering into a contract. Non-familiarity with site conditions will not be considered a reason for not carrying out the work conforming to the specifications. The Bidder is also advised to take all actions he deems necessary to verify the accuracy of all information, to his satisfaction, that has or will be provided by the Owner. The costs of visiting the Site shall be at the Bidder's own expense.

7.0 <u>Bill of Quantities:</u>

7.1 Bill of quantities is approximate and payment shall be made as per actual certified measurements. The contractor is not entitled for any sort of compensation towards excess materials procured / stored.

7.2 After the placement of the order the successful tenderer shall not be allowed to sublet or assign any part of the work order without Corporation's prior written consent.

8.0 Site Cleaning:

8.1 The Contractor shall take care for cleaning the working site from time to time for easy access to work site and also from safety point of view.

8.2 Working site should be always kept cleared to the entire satisfaction of the Engineer-in-Charge. Before handing over any work to owner, the contractor in addition to other formalities to be observed as detailed in the tender document, - shall clear the site to the entire satisfaction of Engineer-in-Charge.

8.3 Contractor shall arrange to dispose of debris and any other waste product created while carrying out the work. The Contractor shall take due care while disposing of such waste materials and ensure that any rules/ regulations laid down by Municipal Corporation, Port Trust or any other statutory body are not violated. The Contractor shall be responsible and answerable to any complaint arising out of improper disposal of waste material. Quoted rate shall involve the cost of same and no extra payment shall be made towards this account.

8.4 The Contractor shall clear the site of works as per the instructions of the Site Engineer. The site of works shall be cleaned of all men, site equipment, materials, etc and shall be delivered back to the Corporation in a clean and neat condition as required by the Site Engineer within a period of one week after the job is completed after ensuring that all surfaces spoiled during the works such as floors, walls, glass panels, etc are spotless clean.

8.5 In case of failure to do so by the Contractor, the Corporation shall have the right to get the site cleared at the risk and cost of the Contractor.

9.0 Modifications to General Conditions of Contract:

9.1 Ref. Clause 2.6.1.0 & 2.6.2.0 of the GCC. These clauses stand deleted.

9.2 Ref. Clause 4.5.1.1. This clause stands partially modified, 30 days, to be read as 15 days.

9.3 Ref. Clause 6.4.0.0 of GCC, regarding On Account Payments & Advances, this clause is applicable; however, the maximum payment for on account payment shall be restricted to maximum of 90 % of the amount payable for executed work of each item.

9.4 In partial modification of Clause 4.4.0.0 of GCC, price adjustment for delay in completion shall be adjusted at applicable percentage from RA bills, on cumulative value of works done to the concerned RA bill. However, in cases of abandonment of site/termination, price adjustment for delay shall be applied in line with GCC clause 7.0.9.0 on the Total Contract Value as specified in the Acceptance of Tender.

9.5 Clause 6.4.5.0, 6.4.6.0, 6.4.7.0, 6.4.8.0 of GCC for mobilization advance is modified as below:

In partial modification of Clause 6.4.5 of GCC, in Contracts with a Total Contract Value of Rs.10 Crores (Rupees Ten Crores only) and above, the CONTRACTOR may (if specified by him in his bid and accepted by the OWNER) be allowed a Mobilization advance/ advance for an amount equivalent to up to 10% (ten per cent) of the Total Contract Value.

Such advance shall be released in 2 installments as per the following:

- Mobilization advance up to 5% of the Total Contract value
- Advance up to 5% after full recovery of previous installment of mobilization advance along with interest.

The payment of Mobilization Advance / advance shall be subject to the fulfillment of the following conditions:

a. The CONTRACTOR shall have signed and sent back a copy (or copies if so required) of the Acceptance of Tender issued by the OWNER in token of unqualified acceptance thereof.

b. The CONTRACTOR shall have furnished the Initial Security Deposit as stipulated in Clause 2.1.1.0 of GCC and associated clauses hereof.

c. The CONTRACTOR shall have executed the formal contract in terms of the Form of Contract.

d. The contractor shall have made a formal application for the release of the Mobilization Advance I Advance and shall have furnished a Bank Guarantee of an amount equivalent to 110% of the Advance from a Bank in a format approved by the OWNER.

e. The outstanding balance of the Mobilisation Advance / Advance shall carry interest at 1% (one percent) above the MCLR rate declared by State Bank of India on the date of opening of Price Bids;

f. Interest on mobilization advance shall be recovered from running account bills. Contractor, therefore, shall deposit the amount of TDS with the Income Tax department and claim reimbursement from IOCL against submission of TDS certificate.

Without prejudice to any other mode of recovery available to the OWNER, the Mobilization Advance, together with interest thereon calculated on the reducing balance, may be recovered at the rate of 10% (ten percent) of the gross amount certified against each Running Account Bill, till the advance, together with the interest accrued thereon, is recovered in full. The unrecovered balance if any, and interest may be recovered from the Final Bill of the CONTRACTOR and/ or from any other amount due to the CONTRACTOR under any other contract or otherwise.

g. (i) If the OWNER is satisfied that 25% (twenty five per cent) of the Mobilization Advance / Advance and interest accrued till then on the Mobilization Advance has been repaid to or recovered by the OWNER, the OWNER may on the application of the CONTRACTOR, if the Bank Guarantee submitted by the CONTRACTOR covers and secures only the Mobilisation Advance / Advance, permit the CONTRACTOR to substitute the Bank Guarantee by a Bank Guarantee acceptable to OWNER for an amount reduced by 25% (twenty five per cent).

(ii) The provisions of paragraph (i) hereof above, shall mutatis mutandis apply to the OWNER's satisfaction that the CONTRACTOR has repaid 50% (fifty per cent) and/or 75% (seventy five per cent), as the case may be, of the Mobilization Advance/ advance, and interest accrued till then on the Mobilization Advance / Advances.

h. All other conditions stipulated in Clause 2.1.2.0 of GCC hereof shall be applicable to the advance(s).

i. In partial modification of Clause 2.1.2.0 (a) of GCC, the Composite Bank Guarantee shall be for a value equivalent to 110% of advance or 10% of the Total Contract Value, whichever is higher and shall be kept valid up to 3 (three) months beyond the expiry of the Defect liability.

j. The advance payment by IOC to the bidder shall attract GST /tax liability as applicable on date. The bidder shall have to submit GST / tax invoice as applicable for claim of the advance payment by IOC.

9.6 Ref Section 9.0: Arbitration & alternate dispute resolution machinery of GCC stands deleted. The reference to Arbitration & alternate dispute resolution machinery provision as contained in General Condition of the Contract or in any terms & conditions, which may be general or special in nature shall stand deleted to the extent, the said contents are applicable to the arbitration provisions.

9.7 Conciliation Rules: Not withstanding any other dispute resolution provided under the GCC, with a view to speedy resolution, the contractor & Owner may at any time endeavor to settle through Conciliation a dispute referable for settlement by conciliation under & in accordance with the Indian Oil Corporation Limited Conciliation Rule, 2014 (hereinafter called as "Said Rules") as amended from time to time. The said rules may be downloaded from the owner's website www.iocl.com & if not available a copy thereof may be obtained from the Owner on written request.

10.0 Penalty Clause in case of breach of safety:

The penalty for breach of safety during execution of works shall be levied by the Corporation as below:

a. Violation of applicable safety, health and environment related norm, a penalty of Rs. 5000/- per occasion.
b. Violation as above resulting in

- Any physical injury, a penalty of 0.5% of the contract value (max. of Rs. 2 lacs) per injury in addition to Rs. 5000/- as mentioned above.
- Fatal accident, a penalty of 1% of the contract value (max of Rs.10 lacs) per fatality in addition to Rs.5000/- as mentioned above.

c. GST on such penalty shall be additionally recovered by IOC from the vendor.

11.0 Pre-Bid Meeting: Any queries in connection with the bid shall be discussed and clarified during a pre-bid conference as per time and venue specified in the tender. The authorized representatives of the parties who have downloaded the tender shall only be allowed to attend the meeting. Parties to send soft copy of assumptions / exception / deviations / clarification at least one working day in advance to the concerned persons in the format listed below.

Sl. No.	Tender Page & Clause No.	Tender Condition	Deviation / Clarification / Exception/Assumption

The tenderers shall send their representatives with authorization to sign the minutes of Pre bid conference and they shall be in a position to take decision on Pre bid discussion.

12.0 General:

12.1 Notwithstanding the sub-divisions of the tender document into several sections and volumes, every part of each shall be deemed to be supplementary of every other part and shall be read with and into the contract so far as it may be practicable to do so.

12.2 Setting out:

a. The Contractor shall submit a PERT chart immediately upon award of work detailing the sequence of work and estimated time of completion for approval by IOCL.
b. Any approach, pathway, working platform etc required for the movement and working of men and machinery in the site shall have to be provided by the Contractor at their own cost.

12.3 The contractor is required to take necessary care to protect to the existing nearby structure while carrying out his scope of work. Any damage caused to other property shall be rectified at his own cost.

12.4 Payment to the contractor through Electronic Clearing System (ECS) can be made, subject to agreement by representative banks of IOCL and Contractor if feasible. For this option contractor to confirm and submit details of Bank accounts. Contractor shall submit "tax invoice" wherever applicable.

12.5 The bidders to state that they are not engaging child labour as per various labour laws applicable to them. Any entity making a fake claim would have its contract terminated forthwith, if detected later. The declaration should be given by the successful bidders on their letter head along with the accepted copy of the work order:

13.0 TESTS & INSPECTION

13.1 Acceptance of material shall be subject to inspection at IOCL site, approval and release by Inspection Agency/IOCL.

13.2 The contractor shall carry on the various tests, required as per relevant Indian Standards specifications and our technical specifications stated in the tender. The technical documents will be furnished by him during the performance of the work.

13.3 All the tests either on the field or at approved test houses/outside laboratories concerning the execution of the work and supply of materials by the contractor shall be carried out by the contractor at his own cost.

13.4 The works at site will be supervised either by IOC site engineer or by Project Management Consultant (PMC) agency appointed by IOC. It shall be the responsibility of the contractor to ensure that the works are carried out with due inspection of works by Site Engineer /PMC agency as per approved QAP at every stage of work. Further it shall also be the responsibility of the successful tenderer to submit bills for payment, which are duly certified by Site Engineer/PMC agency. Bills shall be processed for the works completed, measured and entered in the MB duly signed by both successful tenderer and TPI. During execution of works, it shall be noted that deviations shall be put up duly endorsed by TPI agency.

13.5 Many works executed may need clearance from an Acceptance Committee formed by Corporation at various stages of the work. Contractor shall render full cooperation and comply with all the observations, instructions of the Committee at no extra cost to IOC.

13.6 The work is subject to inspection at all times by the Site engineer and/or by a Third Party Inspection agency. The contractor shall carry out all instructions given during inspection and shall ensure that the work is being carried out according to the technical specifications of this tender, the technical documents that will be furnished by him during the performance of the work and the relevant codes of practices.

13.7 The contractor shall provide, for purposes of inspection by Corporation or by Third Party Inspection Agency, access ladders, lighting and necessary instruments at his own cost.

13.8 Any work not conforming to the approved execution drawings, specification and codes shall be rejected forthwith and the contractor shall carry out the rectifications / replacement at his own cost.

13.9 All results of inspection and tests will be recorded in the inspection reports, proforma of which will be approved by the site-engineer. These reports shall form part of the contract and shall be submitted to Corporation, periodically and for obtaining payment as per payment schedule.

13.10 Inspection and acceptance of the work by Site Engineer or Third Party Inspection Agency shall not relieve the contractor from any of his responsibilities under this contract.

13.11 Providing and operating necessary measuring and testing devices (including all consumables). Therefore, no separate payment for testing shall be made which are required to ensure achievement of specified quality.

13.12 The contractor shall also at his cost make all arrangements and shall provide all such facilities as the site engineer may require for collecting, preparing, and if required, forwarding the required number of samples for tests and for analysis as per the frequency of the tests considered necessary by the site engineer at such time and to such places as directed by him at the expense of the Contractor.

13.13 Testing of material shall be done as per Quality Assurance Plan (QAP). All materials to be used in the work to give finished work complete in all respects shall comply with the requirements of IOCL specifications and shall pass all the tests and analysis as per QAP.

13.14 Charges for appointment of TPIA with the scope mentioned above shall completely be borne by the contractor. Bidders should quote the rates accordingly. List of approved third party agencies are listed below:

a. M/s Bureau Veritas Industrial Services (I) Pvt. Ltd.
b. M/s Indian Register of Shipping Inspection Services
c. M/s Lloyds Register Industrial Services (I) Pvt. Ltd.
d. M/s Det Norske Veritas Certification
e. M/s Engineers India Limited
f. M/s TUV
g. M/s SGS

14.0 PAYMENT TERMS:

The payment terms should be read in conjunction with Section 6 of GCC. Payment shall be released as per the following schedule:

A. PAYMENT TERMS FOR SUPPLY ITEMS:

a) Upto 80% on pro-rata basis against receipt of supply items/materials at site in good condition, along with submission of necessary test/ inspection/ TPIA release note/ statutory certificates along with invoice. Additionally GST amount as reflected in vendor's tax invoice shall be paid in full i.e. 100% (% GST reimbursed shall be limited to percentage quoted by vendor at the time of tender or actual, whichever is lower)

b) Upto 15% on pro-rata basis against installation / erection of respective materials.

c) Balance 5% payment shall be released alongwith final bill after completion of works and commissioning of system.

B. PAYMENT TERMS FOR INSTALLATION/ TESTING/ COMMISSIONING ITEMS

a) Upto 95% payment on pro-rata basis shall be released for the materials erected / installed.
b) Balance 5% payment shall be released with final bill after after completion of works and commissioning of system.

There shall be no restriction in value for submission of RA bills. In normal circumstances, payment shall normally be made within 30 days from the date of receipt of bills, provided the bills are legitimate and free from any dispute.

Following documents/ activities shall be completed before submission of final bills:

- Copy of test certificates, Warranty certificates as applicable
- Material reconciliation statements & documentation of site records as applicable
- As built drawings
- Any other specific documentation required by IOCL such as GST payment details etc
- Cleaning & clearing of site

15.0 The contractor is required to take necessary care to protect the existing nearby structure while carrying out his scope of work. Any damage caused to other property shall be rectified at his own cost.

16.0 MISCELLANEOUS REQUIREMENTS:

16.1 It shall be contractor's responsibility to obtain approval for any revision and/ or modifications decided by the contractor from the Owner/Engineer-in-Charge before implementation. Also such revisions and/or modification if accepted / approved by the Owner/Engineer-in-Charge shall be carried out at no extra cost to the owner.

16.2 Any changes required during and/or after approval for detailed construction drawings due to functional requirements or for efficient running of system keeping the basic parameters unchanged and which has not been indicated by the Contractor in the data / drawings furnished along with the offer, will be carried out by the contractor at no extra cost to the owner.

16.3 It shall be entirely Contractor's responsibility to provide, operate & maintain necessary construction equipments, scaffoldings and safety gadgets, cranes and other lifting tackles, tools and appliances to perform the work in a workman like and efficient manner & complete all jobs as per time schedules.

16.4 Preparing approaches and working area for movement and operation of the cranes, levelling the areas for assembly and erection shall also be the responsibility of the Contractor. The Contractor shall acquaint himself with access availability, facilities such as railway siding, local labour etc. to provide suitable allowances in his quotation. The Contractor, at his own cost, may have to build temporary access roads to aid his own work which shall also be taken care while quoting for the work.

16.5 The procurement and supply in sequence and at the appropriate time of all materials & consumables shall be entirely the Contractor's responsibility. Rates for execution of work will be inclusive of supply

of all these items.

17.0 SAFETY PRECAUTIONS & WORK PERMITS:

17.1 Contractor shall have to take all safety precaution for carrying out any hot / cold/ height works after obtaining necessary permits at his own cost as directed by the Engineer-In-Charge. Necessary safety equipment such as safety belts, helmets and other equipments are to be positioned by the contractor and use as per requirement.

17.2 Safety distance as per PESO/ CCE Rules and Oil Industry Safety Directorate shall be maintained strictly.

17.3 Any casualty or damage caused to property or person by any untoward incidents while executing this contract will be at the contractor's risk and cost.

17.4 The contractor shall also abide by the work permits to be taken on day to day basis from the location as per policy of the Corporation.

17.5 The contractor shall deploy a licensed electrical contractor for doing the electrical works.

17.6 The successful tenderer shall be responsible for observance of all conditions as per Appendix III furnished along with GCC with regard to safety.

18.0 LIMITATION OF LIABILITY: The total liability of the Vendor in Contract, warranty, indemnity, arising out of performance of this contract, shall not exceed the total contract value except in case of fraud and/or willful negligence, and shall terminate upon expiry of the defect liability period as defined in this contract or agreed extension thereof, in no event shall the vendor be liable for loss of revenue, profit or anticipated profit, loss of use of work or any associated equipment, cost of capital of facilities, business interruption or any other in direct and consequential damages.

19.0 SECRECY AGREEMENT: Contractor shall as a part of his obligation sign an agreement for secrecy of the drawings / documents with IOC. Contractor, hereby, expressly undertake to keep all the drawings/documents as well as other technical information given in the Contract document secret and shall not divulge or leak or otherwise cause to be known to the competitors or others having any interest in such process in anyway the contents in any form, shape or method.

20.0 In case sub-contractors are engaged by the successful tenderer with prior permission from IOCL on award of works, it will be mandatory on part of the main contractor to furnish a NO DUE UNDERTAKING from the sub-contractor (on their letter heads) to IOCL before final payments are cleared by the Corporation.

21.0 In case of irreconcilable conflict in any matter between the provisions in separate contract documents concerning or governing the same aspect, precedence shall be given to the provisions contained in the documents mentioned below in the order in which they are set out below:

a) Formal Contract
b) Acceptance of Tender / Letter of Acceptance (LOA)
c) Price Schedule annexed to Letter of Acceptance (LOA)
d) Agreed Variations annexed to the Letter of Acceptance (LOA)

e) Pre-bid Minutes/ Corrigendums
f) Addenda to the Tender documents
g) Notice inviting Tender
h) Special Terms & Conditions of Contract
i) General Conditions of Contract
j) Instructions to tenders

Any variation or amendment issued after the execution of the formal contract shall take precedence over the formal contract and all other Contract Documents. Notwithstanding the sub divisions of the tender document into several sections and volumes, every part of each shall be deemed to be supplementary of every other part and shall be read with and into the contract so far as it may be practicable to do so.

22.0 VERIFICATION OF DOCUMENTS:

Submission of authentic documents is the sole responsibility of the bidder. However, IOCL reserves the right to verify the PQC documents submitted by the bidder(s). For the purpose of verification, bidders shall submit complete client details with names, address, phone numbers and e-mail id with the understanding that IOCL may contact the bidder's client to verify the PQC documents. Wherever required, bidders may have to submit notarized / verified copy of PQC documents. Non submission of these documents, if asked for, will lead to rejection of offer. Should IOCL decide to place order pending verification of PQC documents, payment shall be made only after completion of order. If at any stage, the PQC documents are found to be forged / false / fake, suitable penal action shall be taken, which may include offer rejection, EMD forfeiture, termination of order (wherever applicable) and holiday listing of the bidder / vendor.

23.0 INTEGRITY PACT AGREEMENT:

This Tender falls under the Integrity Pact Program, hence vendors have to necessarily execute the Integrity Pact Agreement. All the prospective bidders willing to participate in this tender shall have to necessarily sign the Integrity Pact Agreement (IPA) in order to be eligible to participate in the tender. In case the bidder does not sign the IPA, a reasonable grace time as determined by the Tender Inviting Authority may be given and thereafter, the bidder shall be disqualified. However, no EMD shall be forfeited in such cases.

In case there is violation of the Integrity Pact (IP) after submission of the tender, the tender inviting authority shall suitability consider the case and may forfeit the EMD. Similar procedure shall be followed in case of any violation after the award of the contract after considering the various factors.

24.0 TYPOGRAPHICAL OR CLERICAL ERRORS:

The Corporation's clarifications regarding partially omitted particulars or typographical or clerical errors shall be final and binding on the Contractor.

ANNEXURE – 4

SPECIAL CONDITIONS OF CONTRACT – STANDARD TAXATION CLAUSES (STC)

Clause	Description
	DEFINITIONS
	Contractual period / Work Completion Period /Contractual Delivery Date / Contractual Completion Period shall mean the Scheduled Delivery / Completion Period as mentioned in the LOA (Letter of Acceptance) or Purchase Order or Work Order and shall also include approved extensions, if any.
	GENERAL
1	Where any portion of the GCC/any other section of tender, is repugnant to or at variance with any provision of the Standard Taxation Condition (STC), then the provision of the STC shall be deemed to override the provisions of the GCC and shall, to the extent of such repugnance or variations, prevail.
2	For the purpose of this STC, the term "tax" in addition to tax imposed under CGST (Central Tax)/SGST (State Tax)/IGST (Integrated Tax)/UTGST (Union Territory Tax)/ GST Compensation Cess Acts, also includes any duties, cess or statutory levies levied by central or state authorities.
3	Rate variation in Taxes and any new promulgated taxes after last date of the submission of price bid only on the final product and/or services (applicable to invoices raised on IOCL) within the contractual delivery date /period (including extension approved if any) shall be on IOCL's Account against submission of documentary evidence. Further, in case of delay in delivery of goods and/or services, any upward rate variation in Taxes and any new promulgated taxes imposed after the contractual delivery date shall be to the Seller's / Contractor's Account. Similarly in case of any reduction in the rate(s) of the Taxes between last date of submission of price bid relevant to the Contract and the date of execution of activities under the contract, the Contractor shall pass on the benefit of such reduction to IOCL with the view that IOCL shall pay reduced duty/Tax to Govt.
4	Wherever any escalation / de-escalation linked to raw material price (Basic price excluding taxes) is allowed as per terms of the contract, Variation to the extent related to escalation / de-escalation of value of material shall be allowed without Tax unless specified otherwise.
5	It would be the responsibility of the contractor to get the registration with the respective Tax authorities. Any taxes being charged by the Contractors would be claimed by issuing proper TAX Invoice

Clause	Description
	indicating details /elements of all taxes charged and necessary requirements as prescribed under the respective tax laws and also to mention his correct and valid registration number(s) along with IOCL's registration number as applicable for particular supply on all invoices raised on IOCL. Contractor to provide the GSTIN number from where the supply is proposed to be under taken. Further the HSN Code / Service Accounting Code (SAC) as applicable for the subject tender needs to be provided in the columns provided in the technical bid. In case the contractor is opting for Composition scheme under the GST laws (i.e Section 10 of the CGST Act, 2017 and similar provisions under the respective State / UT law), the contractor should confirm the same. Further the contractor to confirm the issuance of Bill of Supply while submission of tender documents and no GST will be charged on IOCL. In case the contractor is falling under Unregistered category, the contractor should confirm the same.
6	IOCL will be entitled to withheld/recover the amount equivalent to the value of GST charged in tax invoice/debit note to IOCL along with other consequential implications in cases where contractor/supplier defaults in deposit of taxes to Govt. or non updation / incorrect updation of the invoice data in GSTN network or non-filling of returns or wrongly charges Integrated Tax in place of Central Tax + State/Union Territory Tax or vice versa or any other non-compliance of GST laws. The amount so withheld would be paid to contractor/supplier after successful compliance of the defaults, like updation/rectification in subsequent months on GSTN portal, on or before the maximum time stipulated for furnishing (filing) of outward supply return/statement under Section 37(1) of the Central Goods and Services Act, 2017, (CGST) for October of the next FY to which such invoice/debit note pertains. Such amount would be recovered being reduction in the value of original invoice in case such default in compliance is neither corrected/rectified on or before the time stipulated for furnishing (filing) of outward supply return/statement under Section 37(1) of the Central Goods and Services Act, 2017, (CGST) for October of the next FY to which such invoice/debit note pertains.
7	Tax element on any Debit Note / Supplementary invoice, raised by the contractor will be reimbursed by IOCL as long as the same is within the permissible time limit as per the respective taxation laws and also permissible under the Contract terms and conditions. Contractors to ensure that such debit Notes are uploaded while filing the Statutory returns as may be prescribed from time to time.
8	The contractor will be under obligation for quoting/charging correct rate of tax as prescribed under the respective Tax Laws. Further the Contractor shall avail and pass on benefits of all exemptions/concessions/benefits/waiver or any other benefits of similar nature or kind available under the Tax Laws. In no case, differential Tax Claims due to wrong classification of goods and/or services or understanding of law or rules or regulations or any other reasons of similar nature shall be entertained by IOCL.
9	**Left blank**
10	In case the contractor is opting for Composition scheme under the GST laws, in such event the evaluation of his bid will be based on the Quoted Price. In case the contractor is falling under Unregistered category, then GST liability, if any, on IOCL will be included for the purpose of evaluation.
11	In case, IOCL is eligible to avail Input TAX Credit (ITC), the same shall be reduced from the delivered price to arrive at the net landed cost.
12	IOCL shall reimburse GST levied as per invoice issued by the Contractor as prescribed under section 31 of the CGST Act and respective states and Rules.

Clause	Description
13	To enable IOCL to avail ITC, the contractor/supplier shall furnish/submit any and all certificates, documents and declarations as are required by IOCL to avail of the ITC with respect to GST reimbursed by IOCL on materials sold to IOCL.
14	Invoice should be raised as per Tax Rates mentioned in the BIDs and in case at the time of raising Invoice if the invoices raised are not as per Tax rates mentioned in the bid, payment will be limited to the rate quoted as per BID subject to increase /decrease in Rates after last date of submission of Price Bid provided delivery is within the Contractual period.
15	Wherever provisions of Tax deduction at Source (TDS) are applicable under the CGST/ SGST/ UTGST/ IGST Act, 2017 on supplies of goods or services or both to IOCL, tax will be deducted from the invoice raised and deposited with the authorities by IOCL. TDS certificate as per provisions of CGST/ SGST/ UTGST/ IGST Act, 2017 shall be issued by IOCL.
16	**CUSTOM DUTY (Certain clauses will not be applicable wherever port clearances are in the scope of IOC and IOC is to take delivery at Port) applicable for Global Tender**
16.1	Custom Duty for this clause shall mean Basic Custom Duty, Additional Duty of Customs levied under Section 3 of the Customs Tariff Act equivalent to the IGST and Education Cess and Secondary and Higher Secondary Cess, Social Welfare Surcharge (SWS).
16.2	The contractor shall within 7 (seven) days of dispatch /shipment of any such materials forward to the owner, the following documents. i. Supplier's /Vendor Invoice indicating item wise price of the materials for the purpose of assessing customs and other Import duties ii. Bill of lading/Airway Bill iii. Package wise packing list iv. Certificate of origin and other relevant documents relating to the identification of the materials. v. Other relevant documents for the assessment of customs duties and the clearance of goods through Customs.
16.3	The Contractor shall also be fully responsible for Port and Customs clearance including stevedoring, handling, unloading, loading and storage and for satisfying all Port and Customs formalities for the clearance of the goods , including preparation of the BILL(s) of Entry mentioning the applicable GSTIN of IOCL and other documents required for import and or/clearance of the goods. The applicable GSTIN shall be advised by IOCL. The Contractor shall also be fully responsible for any delays, penalties, interest, demurrages, shortages and any other charges and losses, if any in this regard.
16.4	The Custom Duty payable shall be reimbursed on production of supporting documents or paid directly to the Customs Authority, as the case may be.
16.5	IOCL shall pay the CUSTOM DUTY within 1 (one) working day or specified under Customs law, after the day on which the CONTRACTOR furnishes the complete necessary documents including duty requisition slip along with BILL of ENTRY to the IOCL's designated office for release of requisite materials/ equipment from Customs. However additional cost on account of delayed payment of Custom duty due to IOCL' s fault shall be paid by IOCL.
16.6	IOCL will not bear liability towards payment of safeguard duty, Anti Dumping duty, Protective Duty or Countervailing Duty on subsidized articles or any other such duties of Customs imposed by the Government of India under Custom Tariff Act 1975 applicable on such materials in India.
16.7	All other costs towards Port and Customs Clearance shall be the contractor's responsibility including appointment and payment to clearing agents and no reimbursement will be made by IOCL except as quoted in the price bid.

Clause	Description
16.8	The contractor shall provide IOCL with all documents necessary for IOCL to claim Input Tax Credit (ITC) of the IGST levied under Section 3 of the Custom Tariff Act. Should the contractor fail to provide any such document(s) resulting in a shortfall in the ITC available to IOCL, the shortfall shall be made good by the contractor by issuance of suitable credit note to IOCL. In case the contractor does not issue credit note to IOCL, in such case, IOCL would be constrained to recover the amount along with interest and statutory levy, if any, and such recovery would be without pre-judice to any other mode of recovery from the Running Account or other bills or payments to the Contractor.
16.9	The input tax credit available to IOCL will be reduced to arrive at the net Landed cost in the hand of IOCL for evaluating the Bids.
16.10	In case the bidder is availing any exemption under the prevailing customs law, then necessary documentary proof for availing the said exemption is required to be submitted. In the event of non submission of the requisite documents as per the conditions for availing the exemption by the successful bidder, then the additional outflow on account of various taxes and duties will be recovered from the bidder.
16.11	The Tariff Head under which the goods will fall should be clearly mentioned along with the Custom Duty Rate at the time of submission of Bid.
17	**ROAD PERMIT /WAY BILL**
17.1	IOCL will issue Road Permit/Way Bill, by whatever name it is called, to the Contractor only in those cases where materials is purchased by IOCL directly and/or IOC is statutorily required to issue the Road permit/Way Bill, by whatever name it is called. Contractor will be under obligation for proper utilization of road permits for the specific supply and in case of seizure of goods/vehicle; the Contractor will be wholly responsible for release and reimburse the litigation cost to IOCL.
17.2	IOCL shall on no account be responsible for delay or hold up due to the timely non availability of such documents as are required to be furnished by the owner to obtain the Road Permit/Way bill, by whatever name it is called. However, IOCL shall make best efforts to provide sufficient number of Road Permits/way bill, by whatever name it is called, on demand to avoid any delay or Hold up.
18	**Works Contract / Composite Supply / Mixed Supply**
18.1	Works contracts as defined under the GST law includes Contracts for Building, Construction, Fabrication, Completion, Erection, Installation, Fitting out, Improvement, Modification, Repair, Maintenance, Renovation, Alteration or Commissioning of any immovable property wherein transfer of goods is involved in the execution of such contracts. Composite Supply has been defined as supply in which two or more supply of goods or service or both or any combination are naturally bundled and supplied in conjunction with each other in the ordinary course of Business, and then the rate as applicable for principal supply will be applicable on the entire transaction. Mixed supply has been defined as supplies of goods or service or both which are made in conjunction with each other for a single price and which does not constitute a composite supply then the rate as applicable for the highest rate will be applicable. In view of the above various definitions under GST law, bidders are required to evaluate the jobs to be undertaken covered under the tender and quote accordingly by taking in to account the nature of Job read with the legal provision. The place of supply in relation to an immovable property shall be the location at which the immovable property is located or intended to be located.

Clause	Description
18.2	In case, IOCL is eligible to avail Input TAX Credit (ITC), the same shall be reduced from the delivered price to arrive at the net landed cost. IOCL shall reimburse GST levied as per TAX invoice issued by the Contractor as prescribed under respective GST Acts and Rules. In case the contractor is not permitted to issue Tax Invoice the same should be clearly mentioned in the price Bid.
18.3	To enable IOCL to avail ITC, the contractor/supplier shall furnish/submit any and all certificates, documents and declarations as are required by IOCL to avail of the ITC with respect to VAT reimbursed by IOCL on materials sold to IOCL.
18.4	Invoice should be raised as per Tax Rates mentioned in the BIDs and in case at the time of raising Invoice if the invoices raised are not as per Tax rates mentioned in the bid, payment will be limited to the rate quoted as per BID subject to increase /decrease in Rates after last date of submission of Price Bid provided delivery is within the Contractual period.

ANNEXURE – 5

GUIDELINES FOR EVALUATION OF CONTRACTORS' PERFORMANCE

1.0 General

A system for evaluation of Contractors' Performance is a key process and important to support an effective contracting function of an organization.

Performance of all Contractors needs to be closely monitored to ensure complete execution of project within scheduled completion period. For timely execution of projects and achieving the desired goals of the organization, it is necessary to monitor the execution of project or contracts right from the award stage to completion stage and take corrective measures in time.

2.0 Objective

The objective of Contractor Performance Evaluation is to ascertain the performance of the Contractor with respect to satisfactory execution of work while maintaining Safety and Quality standards and to develop reliable Contractors so that they consistently meet or exceed expectations and requirements.

The purpose of this guideline is to put in place a system to monitor performance of Contractors associated with IOCL so as to ensure timely completion of various projects. Contractor's Performance Evaluation Methodology should be integral part of the respective tenders.

3.0 Measurement of Performance

Standard Format attached as **Annexure-B** shall be used for evaluating Contractors' Performance. All Civil / Mechanical / Electrical Works with estimated value of Rs. 10 Crores and above would be evaluated. The performance of the Contractor would depend upon the total marks obtained.

4.0 Basis of Contractors' Performance Evaluation

The contractors' actual performance till actual mechanical completion vis-a-vis the overall progress S-curve finalized in the base planning package document shall form the basis for the evaluation of performance of contractor.

5.0 **Stages of Evaluation:**

Performance Evaluation of Contractor shall be done independently at following two stages of the project as per Overall Progress S-curve and at Mechanical Completion:

i) First performance evaluation shall be done at initial stage i.e. at 50% Schedule Progress stage as per Overall Progress S-curve.
ii) Second performance evaluation shall be done at Schedule completion stage i.e. at 100% Schedule Progress stage as per Overall Progress S-curve.
iii) Third performance evaluation shall be done at Actual completion stage i.e. at Mechanical Completion.

Note:

1) Performance evaluation for stages against SN (i) & (ii) shall be completed within a period of 01 (one) month after reaching at designated schedule progress stage.

2) Performance evaluation for SN (iii) shall be completed within a period of 03 (Three) months after achieving Mechanical Completion.

6.0 **Performance Rating:**

Depending upon the Total Marks obtained by the contractor, the performance rating of the contractor shall be finalised as per following:

Sl.No.	%age of Marks obtained	Performance Rating
1	>80%	Very Good
2	> 60% but<80%	Good
3	> 40% but< 60%	Fair
4	<40 %	Unsatisfactory

7.0 **Action based on performance rating**

7.1 Following actions shall be taken at different evaluation stages depending upon the Performance ratings:

Sl. No.	Evaluation Stage	Performance Rating	Recommended Action
1	Initial Stage (50% Schedule Progress)	Very Good	No further action
		Good	Letter to the contractor for improving the performance in future
		Fair	Restrict Contractors' Pre-qualification in future jobs **(Note)**
		Unsatisfactory	Banning for future jobs **(Note)**
2	Schedule Completion Stage (100% Scheduled Progress)	Very Good	No further action
		Good	Letter to the contractor for improving the performance in future
		Fair	Restrict Contractors' Pre-qualification in future jobs **(Note)**
		Unsatisfactory	Banning for future jobs **(Note)**
3	Actual Completion Stage (After Mechanical Completion)	Very Good	No further action
		Good	Letter to the contractor for improving the performance in future
		Fair	Restrict Contractors' Pre-qualification in future jobs **(Note)**
		Unsatisfactory	Banning for future jobs **(Note)**

Note:

In case of Fair / Unsatisfactory rating, indicated penal action shall be taken for future jobs for a maximum period of 1 year across all Divisions, with a provision for revoking such penal action in case of improvement in performance in the job under evaluation or any other concurrent job (having contract value of minimum 80 % of the job under evaluation) at similar or higher stages of evaluation in the same Division.

7.2 Restriction in Contractors' Pre-qualification in future jobs

In future jobs, prequalify the contractor only for the works of estimated value up to X% of the original contract value for which "Fair Performance" rating has been given.
"X"= Marks obtained by the contractor

7.3 Banning

Not to consider the contractor in future jobs.

Wherever Contractor is to be banned / Holiday listed, after finalization of scores, the procedures for holiday listing as required including evaluation of reply against show cause notice by multi disciplinary committee shall be followed.
For banning / holiday listing of party, the committee should specifically take into account the moving average score of last one (1) year of the party in deciding on the time period of holiday listing (maximum 1 years).

Such banning on account of CPE shall be without prejudice to other rights and & remedies available to the owner under the contract.

Annexure-B

INDIANOIL CORPORATION LIMITED
MARKETING DIVISION

FORMAT FOR

EVALUATION OF CONTRACTORS' PERFORMANCE - WORKS>10 CRORES

1.0 Name of Contractor along with SAP code
2.0 Work Order No. & Date
3.0 Name of Work
4.0 Contract Value (Rs.)
5.0 Scheduled Completion Period
6.0 Date of Start
7.0 Contractual Completion Date
8.0 Actual Completion Date
(Not Applicable for Inital / Mid stage evaluation)
9.0 Execution Amount
(Paid amount till date of report)
10.0 Stage of Evaluation (Please (v) mark against respective stage):

1. Initial stage at 50% Schedule Physical Progress as per Overall Progress S-curve ☐

2. Schedule Completion stage at 100% Schedule Physical Progress as per Overall Progress S-curve ☐

3. Actual Completion stage at Mechanical Completion ☐

11.0 **Allocation of marks: (To be filled up by SIC for calculation of marks)**
11.1 Allocation of marks for Initial& Schedule Completion stage:

%age Schedule Physical Progress at Evaluation Stage	%age Schedule Physical Progress worked out after delay	%age Actual Physical Progress	Marks obtained by Contractor
	A%	B%	C=(B/A) x 100%

11.2 Allocation of marks for Actual Completion stage (i.e. Mechanical Completion):

11.2.1 In case there is NO DELAY solely attributable to contractor, marks obtained by the contractor= 100

11.2.2 In case there is DELAY solely attributable to contractor:

Maximum Marks to be considered	Delay in week(s) or part thereof	For delay up to 20 weeks: Marks to be deducted @ 1 mark per week delay or part thereof	For delay more than 20 weeks: Additional marks to be deducted @ 2 marks per week or part thereof for delay beyond 20 weeks	Marks obtained by Contractor
A	B	C=Bx1	D = (B- 20) X 2	E =A- (C+D)
100				

12.0 Deductions on account of cash flow, part off-loading/ Termination, safety violation, and Quality:

12.1 Cash Flow issues:

SN	Description	Unit Marks to be deducted per Incident	No. Of Incidents	Total No. of Marks to be deducted
	A	B	C	D=B x C
1	Direct payment by IOCL to Sub-Contractor			
2	Failure of Contractor to make timely payment to Contractors' Labour	5		
	Total Marks to be deducted			

Note:

1. The maximum deduction of marks on account of cash flow issues of contractor shall be limited to 20 marks.
2. Incident (s) occurred in a Billing Cycle shall be considered as one incident.

12.2 **Part-Offloading / Termination of work due to poor progress:**

SN	Description	Unit Marks to be deducted / Incident	No. Of Incidents	Total No. Of Marks to be deducted
	A	B	C	D=B x C
1	Off-loading of part work at contractor's risk & cost			
2	Termination of Contract due to poor progress and off loading balance works at contractors risk and cost	20	(0 or 1)	
	Total Marks to be deducted			

Note:

a) The maximum deduction of marks on account of part off-loading in any work shall be limited to 20 marks.

b) In case of termination, evaluation of performance is without prejudice to other rights & remedies available to the owner under the contract.

12.3 **Safety Violation**

For calculation of marks towards deduction on safety violation, the following formula shall be used:

SN	Description	Unit Marks to be deducted /	No. Of Incidents	Total No. Of Marks to be deducted
	A	B	c	D=BxC
1	Violation of applicable safety, health and environment related norm leading to penalty of Rs 5000	2		
2	Violation leading to Physical injury	5		
3	Violation leading to fatal incidence	10		

Note

1. The maximum deduction of marks on account of safety violation in any work shall be limited to 25 marks.
2. Deductions on account of safety violation shall be applicable for the incidents occurred from start to evaluation stage.

12.4 **Quality of Work**

SN	Description	Unit Marks to be	Total No. Of Marks to be deducted
	A	B	
1	Recoveries / amount withheld for rectification up to 1% of executed value	3	
2	Recoveries / amount withheld for rectification between 1% to 2 % of executed value	6	
3	Recoveries / amount withheld for rectification 2 % of executed value	10	
	Total marks to be deducted		

General Note:

The above mentioned deduction towards 12.1, 12.2 and 12.4 shall be applicable for the incidents occurred in between the successive evaluation stages only i.e. between Current evaluation stage and previous evaluation stage. However, the deductions towards 12.3 shall be applicable for incidents occurred from start of work to respective evaluation stage viz. Initial, Schedule completion & Actual completion stages. But, for performance evaluation at Initial stage i.e. 50% Schedule Progress stage incidents occurred between start of work & 50% schedule progress stage shall be considered.

Wherever Contractor is to be banned / Holiday listed, the procedures for holiday listing as required including that for issuance of show cause notice shall be followed.

12.5 **Total Deduction of Marks as calculated at 12.1, 12.2, 12.3 & 12.4** = ...

13.0 Total Marks as allocated to Contractor:

SN	Description		Marks
1	Marks as calculated at 9.0	A	
2	Deduction of Marks as calculated at 10.5	B	
3	Total Marks obtained	C=A-8	

14.0 Performance Rating of Contractor:

Performance rating chart:

SN	%age of Marks obtained	Performance Rating
1	>80%	Very Good
2	> 60% but< 80%	Good
3	> 40% but < 60%	Fair
4	<40%	Unsatisfactory

Depending upon the total marks as obtained by the contractor at 11.0 above, the Performance Rating of the contractor, comes out to be.....

Site Incharge
(Name, Designation, Signature, Date)

Engineer Incharge
(Name, Designation, Signature, Date)

State Engineering Head / DGM(E) at HO
(Name, Designation, Signature, Date)

ANNEXURE – 6

PROFORMA OF BANK GUARANTEE

(FOR ADVANCE)

(On non-judicial paper of appropriate value)

To

Indian Oil Corporation Ltd.

(Marketing Division)

……

……..

Dear Sirs,

1. In consideration of the Indian Oil Corporation Ltd (Marketing Division) having its Registered Office at Mumbai (hereinafter called "The Corporation" which expression shall include its successors and assigns) has awarded M/s _____ (hereinafter called "The Contractor" which expression shall include its successors and assigns) the work of _____ (name of the work) _____ in terms of a contract as constituted by Purchase Order No._____ dated _____ issued by the Corporation to the Contractor (hereinafter called "The Contract" which expression include any formal contract entered in to between the Corporation & the Contractor in super session of the said Purchase Order and/or all the amendments and/or modifications of the Purchase Order).

   AND WHEREAS the Corporation has agreed to advance to the Contractor, at his request, a sum of _____(Rupees _____ only) (hereinafter called "the said Advance" to the Contractor as financial assistance under the Contract on the condition, inter-alia, that the said Advance together with interest thereon at the rate of ___% (percent) per annum on the amount of the said Advance for the time being outstanding shall without prejudice to any other mode of recovery available to the Corporation be recoverable by the Corporation by deduction from the gross accepted amount of any Running Account Bills and the Final Bill of the Contractor commencing from the first Running Account Bill of the Contractor, and meanwhile, the said Advance shall be secured by a Bank Guarantee the details of which are mentioned below.

2. We _____ (indicate the name of the bank) do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Corporation stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by the Corporation by reason of breach by the said Contractor(s) / Supplier(s) / - Seller(s) of any of the terms or conditions contained in the said Agreement or by reason of the Contractor(s) / Supplier(s) ' failure to perform the said Agreement. Any such demand made on the bank shall be conclusive as regards the amount due and payable by the bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding ` _____

3. We undertake to pay to the Corporation any money so demanded notwithstanding any dispute or disputes raised by the Contractor(s) / Supplier(s) / - Seller(s) in any suit or proceeding pending before any court or Tribunal or Arbitrator relating thereto our liability under this present being absolute and unequivocal.

The payment so made by us under this bond shall be a valid discharge of our liability for payment there under and the Contractor(s) / Supplier(s) / - Seller(s) shall have no claim against us for making such payment.

4. We, _____ further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Agreement and that it shall continue to be enforceable till all the dues of the Corporation under or by virtue of the said agreement have been fully paid and its claims satisfied or discharged or till _____ office / department at _____ certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said Contractor(s) / Supplier(s) / - Seller(s) and accordingly discharge this guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before _____ we shall be discharged from all liability under this guarantee thereafter.
5. We, _____(indicate the name of Bank) further agree with the corporation that the corporation shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said agreement or to extend time of performance by the said Contractor(s) / Supplier(s) / - Seller(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the corporation against the said Contractor(s) / Supplier(s) / - Seller(s) and to forbear or enforce any of the terms and conditions relating to the said agreement and shall not be relieved from our liability by reason of any such variation or extension being granted to the said Contractor(s) / Supplier(s) / - Seller(s) or forbearance, act or omission on the part of the corporation or any indulgence by the corporation to the said Contractor(s) / Supplier(s) / - Seller(s) or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provisions have affect of so relieving us.
6. This guarantee will not be discharged due to change in the constitution of the Bank or the Contractor(s) / Supplier(s) / - Seller(s).
7. We, _____(indicate the name of Bank) lastly undertake not to revoke this guarantee during its currency except with the previous consent of the corporation in writing.

Place:

Date:

Yours faithfully

For _____

Signature _____

Name & Designation_____

Name of the Branch _____

NOTE

1. This Guarantee/Undertaking is not to be witnessed.
2. This Guarantee is required to be stamped as an agreement according to the stamp duty act.
3. This Guarantee is required to be sent by Vendor's Bankers directly to the Corporation

PROFORMA OF BANK GUARANTEE
(FOR COMPOSITE BG AGAINST ADVANCE & SECURITY DEPOSIT)
(On non-judicial paper of appropriate value)

To

Indian Oil Corporation Ltd.

(Marketing Division) ……

……..

Dear Sirs,

1. In consideration of the Indian Oil Corporation Ltd (Marketing Division) having its Registered Office at Mumbai (hereinafter called "The Corporation" which expression shall include its successors and assigns) has awarded M/s _____ (hereinafter called "The Contractor" which expression shall include its successors and assigns) the work of designing, manufacturing, fabricating, supply, installation, testing & commissioning of (name of the work) _____ in terms of a contract as constituted by Purchase Order No._____ dated _____ issued by the Corporation to the Contractor (hereinafter called "The Contract" which expression include any formal contract entered in to between the Corporation & the Contractor in super session of the said Purchase Order and/or all the amendments and/or modifications of the Purchase Order).

   AND WHEREAS the Corporation has agreed to advance to the Contractor, at his request, a sum of _____(Rupees _____ only) (hereinafter called "the said Advance" to the Contractor as financial assistance under the Contract on the condition, inter-alia, that the said Advance together with interest thereon at the rate of ___% (percent) per annum on the amount of the said Advance for the time being outstanding shall without prejudice to any other mode of recovery available to the Corporation be recoverable by the Corporation by deduction from the gross accepted amount of any Running Account Bills and the Final Bill of the Contractor commencing from the first Running Account Bill of the Contractor, and meanwhile, the said Advance shall be secured by by a Bank Guarantee the details of which are mentioned below.

2. We _____ (indicate the name of the bank) do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Corporation stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by the Corporation by reason of breach by the said Contractor(s) / Supplier(s) / - Seller(s) of any of the terms

or conditions contained in the said Agreement or by reason of the Contractor(s) / Supplier(s) ' failure to perform the said Agreement. Any such demand made on the bank shall be conclusive as regards the amount due and payable by the bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding ` _____

3. We undertake to pay to the Corporation any money so demanded notwithstanding any dispute or disputes raised by the Contractor(s) / Supplier(s) / - Seller(s) in any suit or proceeding pending before any court or Tribunal or Arbitrator relating thereto our liability under this present being absolute and unequivocal.

   The payment so made by us under this bond shall be a valid discharge of our liability for payment there under and the Contractor(s) / Supplier(s) / - Seller(s) shall have no claim against us for making such payment.

4. We, _____ further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Agreement and that it shall continue to be enforceable till all the dues of the Corporation under or by virtue of the said agreement have been fully paid and its claims satisfied or discharged or till _____ office / department at _____ certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said Contractor(s) / Supplier(s) / - Seller(s) and accordingly discharge this guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before _____ we shall be discharged from all liability under this guarantee thereafter.

5. We, _____(indicate the name of Bank) further agree with the corporation that the corporation shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said agreement or to extend time of performance by the said Contractor(s) / Supplier(s) / - Seller(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the corporation against the said Contractor(s) / Supplier(s) / - Seller(s) and to forbear or enforce any of the terms and conditions relating to the said agreement and shall not be relieved from our liability by reason of any such variation or extension being granted to the said Contractor(s) / Supplier(s) / - Seller(s) or forbearance, act or omission on the part of the corporation or any indulgence by the corporation to the said Contractor(s) / Supplier(s) / - Seller(s) or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provisions have affect of so relieving us.

6. This guarantee will not be discharged due to change in the constitution of the Bank or the Contractor(s) / Supplier(s) / - Seller(s).

7. We, _____(indicate the name of Bank) lastly undertake not to revoke this guarantee during its currency except with the previous consent of the corporation in writing.

Place:

Date:

Yours faithfully

For _____

Signature _____

Name & Designation_____

Name of the Branch _____

NOTE

1. This Guarantee/Undertaking is not to be witnessed.
2. This Guarantee is required to be stamped as an agreement according to the stamp duty act.
3. This Guarantee is required to be sent by Vendor's Bankers directly to the Corporation.

Please refer separately attached **PART B** documents for formats of declaration and undertakings to be uploaded against the other commercial criteria..